February 10, 2016

One Way Plumbing LLC
127 - 10th St. South, Ste 200
Kirkland, WA 98033

RE: THE CORA APARTMENTS
SEATTLE, WA

Welcome to the project team! We have been awarded the opportunity to participate in the construction of THE CORA APARTMENTS in SEATTLE, WA. The Exxel Pacific staff is committed to maintaining a safe workplace, production of a quality product, and adherence to an aggressive schedule. Assistance in all three areas, from all team members, will insure success in achieving these standards.

Enclosed please find your subcontract for this project. Please sign the signature page and initial each page at the lower right side. We ask that you return the signed copy to the Bellingham office either by mail or electronically to Mary Green at maryg@exxelpacific.com. A fully executed copy will be returned to you by email.

PLEASE DO NOT CHANGE THIS AGREEMENT IN ANY WAY. IF YOU HAVE ANY QUESTIONS OR CONCERNS, PLEASE CONTACT OUR OFFICE.

Also attached please find a Guarantee/Warranty form that needs to be executed upon completion of your work.

We urge that you pay close attention to Attachment "A" dated January 18, 2016 titled "Job Rules and Regulations". This document describes the working relationship that we will have in putting this project together. Thank you for your successful proposal and please don't forget to turn in your Site Specific Safety plan, which includes a Site Specific Fall Protection plan for this project to the superintendent on this job.

Exxel needs your Certificate of Insurance as specified in Attachment "B," titled "Insurance Requirements" *returned with the signed subcontract* (sample certificate enclosed). Please don't hesitate to call me should you have any questions concerning this.

We are pleased to work with you and look forward to an enjoyable, profitable, and safe project.

Sincerely,

EXXEL PACIFIC, INC.

Victor Vo
Project Manager

VV/mg

GUARANTEE / WARRANTY

One Way Plumbing LLC
127 - 10th St. South, Ste 200
Kirkland, WA 98033

TO: Exxel Pacific, Inc.
323 Telegraph Road
Bellingham, WA 98226

Date:_____

Job Number: 201602

RE: ***THE CORA APARTMENTS***
SEATTLE, WA

We guarantee that the material and workmanship that was furnished and/or installed on the above referenced project is in accordance with the plans and specifications.

We agree to replace any or all work and/or materials that proves to be defective, except from abnormal usage and/or abuse, for a period of one year from the date of Substantial Completion of the project.

Sincerely,

One Way Plumbing LLC

_____
Signature

_____
Title

Phase: L1.220000 S

OP ID: KY

CERTIFICATE OF LIABILITY INSURANCE

DATE (MM/DD/YYYY) 02/12/14

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AFFIRMATIVELY OR NEGATIVELY AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW. THIS CERTIFICATE OF INSURANCE DOES NOT CONSTITUTE A CONTRACT BETWEEN THE ISSUING INSURER(S), AUTHORIZED REPRESENTATIVE OR PRODUCER, AND THE CERTIFICATE HOLDER.

IMPORTANT: If the certificate holder is an ADDITIONAL INSURED, the policy(ies) must be endorsed. If SUBROGATION IS WAIVED, subject to the terms and conditions of the policy, certain policies may require an endorsement. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).

PRODUCER
Hub International Northwest
P. O. Box 3018
Bothell, WA 98041-3018
Jenny Landers

425-489-4500
425-489-4501

CONTACT NAME:
PHONE (A/C, No, Ext): FAX (A/C, No):
E-MAIL ADDRESS:
PRODUCER CUSTOMER ID #: EXXEL01

INSURED
ABC Contractors
3085 195th Street
Bellingham, WA 98226

INSURER(S) AFFORDING COVERAGE	NAIC #
INSURER A : ACE USA	
INSURER B : Hartford Casualty Insurance Co	
INSURER C : New Hampshire Group	
INSURER D :	
INSURER E :	
INSURER F :	

SAMPLE

COVERAGES **CERTIFICATE NUMBER:** **REVISION NUMBER:**

THIS IS TO CERTIFY THAT THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS

INSR LTR	TYPE OF INSURANCE	ADDL INSR	SUBR WVD	POLICY NUMBER	POLICY EFF (MM/DD/YYYY)	POLICY EXP (MM/DD/YYYY)	LIMITS		
A	GENERAL LIABILITY X COMMERCIAL GENERAL LIABILITY CLAIMS-MADE X OCCUR X XCU Coverage X Stop Gap Liab GEN'L AGGREGATE LIMIT APPLIES PER: POLICY X PRO-JECT LOC			ABC	01/01/16	01/01/17	EACH OCCURRENCE	$	1,000,000
							DAMAGE TO RENTED PREMISES (Ea occurrence)	$	300,000
							MED EXP (Any one person)	$	10,000
							PERSONAL & ADV INJURY	$	1,000,000
							GENERAL AGGREGATE	$	2,000,000
							PRODUCTS - COMP/OP AGG	$	2,000,000
								$	
B	AUTOMOBILE LIABILITY X ANY AUTO ALL OWNED AUTOS SCHEDULED AUTOS X HIRED AUTOS X NON-OWNED AUTOS			ABC	01/01/16	01/01/17	COMBINED SINGLE LIMIT (Ea accident)	$	1,000,000
							BODILY INJURY (Per person)	$	
							BODILY INJURY (Per accident)	$	
							PROPERTY DAMAGE (Per accident)	$	
								$	
								$	
C	X UMBRELLA LIAB X OCCUR EXCESS LIAB CLAIMS-MADE DEDUCTIBLE RETENTION $			ABC	01/01/16	01/01/17	EACH OCCURRENCE	$	2,000,000
							AGGREGATE	$	2,000,000
								$	
								$	
A	WORKERS COMPENSATION AND EMPLOYERS' LIABILITY ANY PROPRIETOR/PARTNER/EXECUTIVE OFFICER/MEMBER EXCLUDED? Y/N (Mandatory in NH) If yes, describe under DESCRIPTION OF OPERATIONS below	N/A		12345	01/01/16	01/01/17	WC STATU-TORY LIMITS X OTH-ER		
							E.L. EACH ACCIDENT	$	1,000,000
							E.L. DISEASE - EA EMPLOYEE	$	1,000,000
							E.L. DISEASE - POLICY LIMIT	$	1,000,000
C	Professional/			NEED TO SHOW COVERAGE			OCC		2,000,000
	Pollution			IF REQUIRED BY CONTRACT			AGG		2,000,000

DESCRIPTION OF OPERATIONS / LOCATIONS / VEHICLES (Attach ACORD 101, Additional Remarks Schedule, if more space is required)
ADDITIONAL INSURED AS REQUIRED BY WRITTEN CONTRACT: EXXEL PACIFIC, INC., 19 W HARRISON, LLC, CPA DEVELOPMENT, LLC AND COLUMBIA PACIFIC ADVISORS, LLC. COVERAGE IS PRIMARY AND NON-CONTRIBUTORY. WAIVER OF SUBROGATION APPLIES. COVERAGE INCLUDES COMPLETED OPERATIONS "YOUR WORK". SEE ATTACHED ENDORSEMENT(S).
RE: 19 W HARRISON, PROJECT#: 201602

CERTIFICATE HOLDER

EXXEL PACIFIC, INC.
323 TELEGRAPH ROAD
BELLINGHAM, WA 98226

CANCELLATION

SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, NOTICE WILL BE DELIVERED IN ACCORDANCE WITH THE POLICY PROVISIONS.

AUTHORIZED REPRESENTATIVE
Jenny Landers

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SAMPLE

Insured:
Policy No.:
Policy Period:

COMMERCIAL GENERAL LIABILITY

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

ADDITIONAL INSURED

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE FORM

SCHEDULE

OR Equivalent Wording

Name of person or organization:

WHO IS AN INSURED (Section II) is amended to include as an insured the person or organization shown in the schedule, but only with respect to liability arising out of your work for that insured by or for you.

COMMERCIAL GENERAL LIABILITY CONDITIONS (Section IV), Other Insurance (Paragraph 4.) is amended by adding the following:

4. Other Insurance

d) This insurance is primary for the person or organization shown in the schedule, but only with respect to liability arising out of your work for that insured by or for you. Other insurance afforded to that insured will apply as excess and not contribute as primary to the insurance afforded by this endorsement.

All other clauses remain the same.

SAMPLE

Contains copyrighted material from the Insurance Services Office, Inc.

POLICY NUMBER: SAMPLE

COMMERCIAL GENERAL LIABILITY

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

ADDITIONAL INSURED — OWNERS, LESSEES OR CONTRACTORS (FORM B)

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART.

SCHEDULE

Name of Person or Organization:

OR Equivalent Wording

(If no entry appears above, information required to complete this endorsement will be shown in the Declarations as applicable to this endorsement.)

WHO IS AN INSURED (Section II) is amended to include as an insured the person or organization shown in the Schedule, but only with respect to liability arising out of "your work" for that insured by or for you.

SAMPLE

Copyright, Insurance Services Office, Inc., 1984

Named Insured:
Policy Period:
Policy No:

If any of the other insurance does not permit contribution by equal shares, we will contribute by limits. Under this method, each insurer's share is based on the ratio of its applicable limit of insurance to the total applicable limits of insurance of all insurers.

SAMPLE

5. **Premium Audit**

   a. We will compute all premiums for this Coverage Part in accordance with our rules and rates.

   b. Premium shown in this Coverage Part as advance premium is a deposit premium only. At the close of each audit period we will compute the earned premium for that period and send notice to the first Named Insured. The due date for audit and retrospective premiums is the date shown as the due date on the bill. If the sum of the advance and audit premiums paid for the policy period is greater than the earned premium, we will return the excess to the first Named Insured.

   c. The first Named Insured must keep records of the inforrr1ation we need for premium computation, and send us copies at such times as we may request

6. **Representations**

   a. When You Accept This **Policy**

   By accepting this policy, you agree:

   (1) The statements in the Declarations are accurate and complete;

   (2) Those statements are based upon representations you made to us; and

   (3) We have issued this policy in reliance upon your representations.

   b. **Unintentional** Failure To **Disclose Hazards**

   If unintentionally you should fail to disclose all hazards relating to the conduct of your business that exist at the inception date of this Coverage Part, we shall not deny coverage under this Coverage Part because of such failure.

7. **Separation** Of **Insureds**

   Except with respect to the Limits of Insurance, and any rights or duties specifically assigned in this Coverage Part to the first Named Insured, this insurance applies:

   a. As if each Named Insured were the only Named Insured; and

   b. Separately to each insured against whom claim is made or "suit" is brought.

8. **Transfer** Of Rights Of **Recovery Against** Others To Us

   a. **Transfer** of Rights Of **Recovery**

   If the insured has rights to recover all or part of any payment, including Supplementary Payments, we have made under this Coverage Part, those rights are transferred to us. The insured must do nothing after loss to impair them. At our request, the insured will bring "suit" or transfer those rights to us and help us enforce them.

   f::\:"**aiver** Of Rights Of **Recovery** (Waiver Of **vubrogation)**

   If the insured has waived any rights of recovery against any person or organization for all or part of any payment, including Supplementary Payments, we have made under this Coverage Part, we also waive that right, provided the insured waived their rights of recovery against such person or organization in a contract, agreement or permit that was executed prior to the injury or damage.

9. When We Do Not Renew

   If we decide not to renew this Coverage Part, we will mail or deliver to the first Named Insured shown in the Declarations written notice of the nonrenewal not less than 30 days before the expiration date.

   If notice is mailed, proof of mailing will be sufficient proof of notice.

SECTION **V**–DEFINITIONS

1. "Advertisement" means the widespread public dissemination of information or images that has the purpose of inducing the sale of goods, products or services through:

   a. (1) Radio;

   (2) Television;

   (3) Billboard;

   (4) Magazine;

   (5) Newspaper; or

   b. Any other publication that is given widespread public distribution.

   However, "advertisement" does not include:

   a. The design, printed material, information or images contained in, on or upon the packaging or labeling of any goods or products; or

   b. An interactive conversation between or among persons through a computer network.

2. "Advertising idea" means any idea for an "advertisement".

3. "Asbestos hazard" means an exposure or threat of exposure to the actual or alleged properties of asbestos and includes the mere presence of asbestos in any form.

4. "Auto" means a land motor vehicle, trailer or semitrailer designed for travel on public roads, including any attached machinery or equipment. But "auto" does not include "mobile equipment".

5. "Bodily injury" means physical:

   a. Injury;

   b. Sickness; or

   c. Disease

   sustained by a person and, if arising out of the above, mental anguish or death at any time.

EXXEL PACIFIC
GENERAL CONTRACTORS

Job Contact Information

Project Name:	THE CORA APARTMENTS
Jobsite Address: (Material Deliveries)	19 W HARRISON SEATTLE, WA 98109

Project Manager: Contracts, Change Orders	**Victor Vo** victorv@exxelpacific.com Cell #: 306.220.5132
Senior Superintendent: Schedule, Material Delivery, Construction Issues & Coordination	**Heith Bowell** heithb@exxelpacific.com Cell #: 360.815.3606
Project Engineer: Safety Plan submission, RFI processing, Submittals, Construction Clarification notices	**Jola Bielecki** jolab@exxelpacific.com Cell #: 425.502.1573
Safety Manager: Jobsite Conditions & Safety	**Joe Sadler** joes@exxelpacific.com Cell #: (360) 815-0755
Insurance Contact: Certificates, OCIP paperwork	**Tansy Peterson** (Main Office) Insurance@exxelpacific.com
Contracts Contact: Scanned contracts and attachments	**Mary Green** (Main Office) maryg@exxelpacific.com
Contract Accounting: Contract Payments, Billing Forms, Lien Waivers, Supplier/Tier Lists	**Peggy DeRosa** (Main Office) peggyd@exxelpacific.com *Prefers email or fax delivery of billing paperwork
Main Office Information: (Please send all contracts, billing paperwork, & general correspondence to this address)	323 Telegraph Road Bellingham, WA 98226 Phone: (360) 734-2872 Fax: (360) 671-7616

THE ASSOCIATED GENERAL CONTRACTORS OF WASHINGTON

SUBCONTRACT FORM
1995 Edition (as modified)

This document has important legal consequences. Prior to its completion or modification, consultation with an attorney is encouraged. This document, unmodified, may not be appropriate in all circumstances.

THIS AGREEMENT, ISSUED THIS Wednesday, February 10, 2016, WAS PREPARED TO FAIRLY ALLOCATE RESPONSIBILITIES, RISKS AND EXPENSES ARISING OUT OF THE PERFORMANCE OF THIS WORK, AND IS MADE AND ENTERED INTO BY AND BETWEEN:

Contractor: **Exxel Pacific, Inc.**
Address: 323 Telegraph Road
Bellingham, WA 98226

Telephone: (360) 734-2872
Fax: (360) 671-7616

Subcontractor: **One Way Plumbing LLC** Job No. 201602 Phase Code L1.220000 S
Address: 127 - 10th St. South, Ste 200
Kirkland, WA 98033

Telephone: (425) 968-8314
Fax: (425) 968-8794

Contractor, for full, complete, and faithful performance of this Subcontract, agrees to pay Subcontractor:

(a) Lump Sum in the amount of:

One Million One Hundred Seventy-Nine Thousand Three Hundred and no/100 Dollars ($1,179,300.00), or

(b) Unit Prices as set forth on the attached Unit Price Addendum which on the basis of Owner's estimated quantities will yield a gross contract price of approximately:

Not applicable Dollars ($_____).

In consideration therefore, Subcontractor agrees as follows:

1. To furnish and perform all work as described in Paragraph 3 hereof, for the construction of:

   THE CORA APARTMENTS

   19 W HARRISON

   SEATTLE, WA 98109

   for 19 W HARRISON LLC hereinafter called Owner, in accordance with the contract dated the 18TH day of January, 2016, between Owner and Contractor, and the general and special conditions of that contract, and in accordance with the drawings (See Attachment "E" titled "List of Plans" dated January 18, 2016), specifications and addenda for the construction referenced therein prepared by VIA ARCHITECTURE, INC. ("Architects"), all of which documents in their entirety are hereinafter referred to as the ("Main Contract") and have been and remain available to Subcontractor.

2. To be bound by all laws, government regulations, and orders and all terms and conditions of the Main Contract, to the extent of the work herein subcontracted, which provisions are hereby incorporated by reference, and all of the terms and conditions of this Subcontract.

3. To provide all supervision, materials, labor, supplies, and equipment for (list Work Description, Specification numbers, Addenda, etc.): Description: Plumbing
   Specification Section(s): 220000

A. This subcontract **includes** but is not limited to the following:

Document Acknowledgement:

1. All work to be performed in accordance with the following Contract Documents:
   a. GMP Bid Set of Plans dated: 07/24/2015.
   b. GMP Bid Set of Specifications dated: 07/24/15.
   c. Pan Geo Geotech Report dated 07/25/2014.
   d. Division 22 – Plumbing Narratives
   e. All other documents referenced by List of Plans Attachment "E" Index of Drawings & Specifications.

General Requirements:

1. Perform work in accordance with all applicable codes, regulations, ordinances, and ADA requirements.
2. The drawings, specifications and other documents listed in Attachment E are Contract Documents and indicate the general scope of the Work. These Contract Documents do not necessarily indicate or describe all work required for the full performance and completion of the Work. Subcontractor is to provide all items required for the completion of the Work without adjustment to the Subcontract Amount. Subcontractor acknowledges and represents that Subcontractor has:
   a. Examined and fully understands the Plans, Specifications and Reports listed as Contract Documents as well as the Owner's criteria and standards.
   b. Determined all procedures, techniques and schedules necessary or appropriate to complete the work.
3. With respect to the Plumbing system, the subcontractor shall provide and be fully responsible and liable for the project as follows:

a. Supply and installation of a complete plumbing system.
b. Provide assistance in the utilization of any equipment or system, such as initial start-up or testing.
c. The subcontractor shall defend, indemnify, and hold harmless the Owner, Architect and Exxel Pacific, Inc. from and against any liability arising out of the performance of the plumbing system design for this project.
d. Clarification drawings as needed during construction
e. The completed work must meet the mutual approval of the Owner, Architect and Exxel Pacific, Inc.
f. Complete plumbing system design include plans for all plumbing systems for the entire project per the 2009 building codes and the local jurisdictions.

4. The subcontractor understands that this is a design/build project and as such we have no recourse back to the owner for change orders unless added scope is initiated by Owner or Exxel Pacific. Therefore, the work is to be performed to the intent of the contract documents, the scope of this work and is for a complete job without change orders.
5. Subcontractor shall obtain all permits required for its work (other than the general building permit, demolition permit, excavation permit, and the shoring permit; which shall be provided by others).
6. Subcontractor agrees to coordinate between Electrical, HVAC, Fire Sprinkler, and Utility subcontractors and other trades in order to provide maximum efficiency in the combined operations to complete the work in the shortest possible time. Continuity of work is not guaranteed and Subcontract Price includes this understanding.
7. Attend weekly subcontractor coordination meetings while onsite, as well as all pre-construction coordination meetings as requested by Exxel.
8. Submit daily reports at the end of each day to Exxel's onsite Superintendent for documentation of onsite manpower, daily work performed, safety meetings, etc. The receipt or approval of a daily report by Exxel's onsite Superintendent does not constitute approval of extra work.
9. Contractor shall direct all communications directly to Exxel Pacific. In no case shall communications be made directly to the Architect, Structural Engineer, or other Project Consultants unless specifically directed by Exxel Pacific.
10. Provide up to six (6) complete sets of shop drawings and other required submittals as required for approval and coordination with other subcontractors. Subcontractor is responsible for all costs associated with printing the required quantity of submittals.
11. Provide three (3) sets of operation and maintenance manuals where necessary. Provide as-built documents for this work. Subcontractor is responsible for all costs associated with printing the required quantity of O&M manuals and as-built documents.
12. Submit draft Pay Application Schedule of Values for approval within two (2) weeks following the execution of this subcontract and prior to your first billing.
13. Daily clean up and proper disposal of all self-generated trash and debris in Exxel provided dumpster. Failure to fulfill this requirement will result in Exxel performing this work and all costs for such clean-up and removal shall be deducted from any payments due to the subcontractor. This requirement extends to composite cleaning efforts with Exxel Pacific and other subcontractors as scheduled by Exxel.
14. Traffic control and certified flaggers as required for this work.
15. Provide all layout for own work, survey to be provided by others.

_____/_____
initial

16. Provide own rigging equipment for hoisting use. Inspect and maintain rigging equipment to current standards, unacceptable equipment to be red flagged and removed from jobsite immediately.
17. Use of Chinese made rigging is **NOT** allowed on jobsite.
18. Provide qualified riggers, qualified signal persons and operators for hoisting use in accordance with current OSHA and DOSH requirements.
19. Provide all scaffolding, material hoisting, and/or man lifts as required for own work.
20. Responsibility for storage and security of own materials, equipment, and tools. Includes provision for a storage container if required.
21. Coordinate with, and protect work from, other trades.
22. Scheduling and management of inspections for own work.
23. Provide all warranties for own scope per Contract Documents.
24. For all Division 1 specification sections, where the specifications state "Contractor" or "by Contractor" it is assumed that you the subcontractor has accounted for the specified item as it apply to your scope.
25. All subcontractors must acknowledge and recognize the existing conditions and restrictions of the underground and overhead utilities on this project. This acknowledgement clarifies that subcontractor has included all necessary equipment, labor and material necessary to work safely around any and all existing utility conditions on and offsite that relate to this project. Further, Subcontractor has the appropriate site specific safety plan for all of these conditions.
26. All changes of work must be approved in advance with a signed change order. In the event that an approved change order allows for work to be performed on a Time and Materials basis, Subcontractor's Extra Work Orders documenting labor and material quantities must be signed daily by Exxel's onsite Superintendent. Extra Work Orders that are not for work already approved in advance and are not signed by Exxel's onsite Superintendent will not be considered for payment.
27. Due to limited space on and around the site, all subcontractors and suppliers will be responsible for acquiring their own offsite lay-down area for storage of materials and will also be responsible for acquiring and paying for offsite parking for their employees and tier subcontractors (limited material storage may be available, but must be coordinated with Exxel's Superintendent).
28. Subcontractor acknowledges that they have visited the site and are aware of the tight working conditions and urban environment. Subcontractor will coordinate and schedule deliveries to accommodate these conditions.
29. Subcontractor understands that this is a project being constructed in the city of Seattle and will carefully maintain necessary measures to protect the general public circulating around the jobsite.
30. It is understood that this is a lump sum contract and that all labor and material cost increases/escalations are included in this pricing for the duration of the project.
31. It is understood that the posting of subcontractor/supplier signage is prohibited onsite.
32. Subcontractor understands that all concrete penetrations and embeds are to be done through prior layout and sleeving. Any costs associated with core drilling, cutting, and x-raying due to a failure to make accommodations ahead of time will be the responsibility of Subcontractor.

_____/_____
initial

33. Subcontractor understands that the site may contain contaminated soil and that the subcontractor is capable of providing workers with proper training and equipment to work in the conditions present.
34. Subcontractor understands that all deliveries and hoisting of materials requires prior coordination of date and time with Exxel's onsite superintendent.
35. All warranties, special warranties and product warranties will begin on the "Date of Substantial Completion" for the entire project per Contract Documents.

Schedule:

1. Strict compliance with Exxel Pacific's construction schedule. The current projected start date for this work is **tentatively scheduled for January 18, 2016**. Start date is subject to change and to be confirmed further with Exxel's onsite Superintendent.
2. This work is to be complete as required by local jurisdiction to carry out required inspections for a Temporary Certificate of Occupancy (TCO) on or before **July 14, 2017** and a Final Certificate of Occupancy on or before **July 28, 2017**.
3. Subcontractor to meet all scheduled durations in the contract schedule. The start/finish dates may change as work progresses however the durations are to be met in the amount of time as scheduled or less time.
4. Shop drawing/submittal package and Schedule to be submitted within two (2) weeks from the date of this subcontract.
5. All work is to be done during regular business hours, unless Subcontractor gets behind on its work due to its own failure to meet the established schedule. In this case, Subcontractor shall increase onsite manpower, work overtime, and/or outside of regular business hours to catch up with project schedule. All work is also to be performed within the allowable working times specified in the Master Use Permit. If weekend or holiday work is necessary for Subcontractor to catch up or stay on schedule, it needs to be coordinated a minimum of one (1) week in advance with Exxel's site superintendent.
6. The hours of construction activity shall be limited to non-holiday weekdays between the hours of 7:00 a.m. and 6:00 p.m. and between the hours of 9:00 a.m. and 5:00 p.m. on Saturdays (except that grading, delivery and pouring of cement and similar noisy activities shall be prohibited on Saturdays). This condition may be modified by DPD to allow work of an emergency nature. This condition may also be modified to permitted low noise exterior work (e.g., installation of landscaping after approval from DPD.
7. Includes all overtime costs as required to meet established Exxel Pacific construction schedule, with mutually agreeable durations, as agreed to in this subcontract.
8. Subcontractor is required to obtain approval from Exxel's Site Superintendent before downsizing current workforces.
9. Subcontractor recognizes that the schedule requires coordination with other trades and that their work may not be performed as a continuous operation. Subcontractor will schedule delivery of all materials to coincide with installation dates established by Exxel and in accordance with the current Project Construction Schedule.

Safety:

1. Provide your own site specific safety plan, fall protection plan, and MSDS sheets. These documents shall be submitted four (4) weeks prior to starting work onsite. Under no

circumstance shall work commence prior to the submission and acceptance of these documents.

2. Provide all required fall protection gear for your own personnel.
3. Designate a competent person from onsite crews to act as Safety Officer.
4. Local, State and Federal safety requirements associated with this work are included in this subcontract. Work practices must conform to Washington State Department of Labor and Industries, OSHA, and WISHA Standards.
5. Replacement of guardrails, fencing, etc. if removed for own work.
6. All subcontractors and their employees must adhere to Exxel Pacific's safety policy at a minimum and provide their own personal protection equipment. This includes, but is not limited to, the use of safety glasses, hard hats, and high visibility safety vests at all times while onsite.
7. At least one supervisor that is First Aid and CPR certified must be present at all times while Subcontractor is performing work onsite. Copies of these certifications are required to be on file with your site specific safety plan.
8. Subcontractor is to provide a first aid kit for workers onsite at all times.
9. Attend preconstruction safety meeting prior to starting work onsite. This meeting must be attended by Subcontractor's jobsite supervisor(s) and safety officer(s).
10. All subcontractor employees are to attend weekly Exxel Pacific safety meetings while working onsite at no additional cost to the General Contractor.
11. Each individual performing work onsite must attend the Exxel Pacific Safety Orientation prior to starting work onsite. Upon completion of the orientation, each individual will be given a hard hat sticker specific to the project. Individuals not bearing this sticker are not allowed on the jobsite.
12. Subcontractor is required to review and sign the Scaffolding Waiver of Indemnity and Hold Harmless Agreement attached to this subcontract. This document must be signed and returned with the signed subcontract, prior to commencing work onsite. Additionally, this document must be signed by Subcontractor's jobsite supervisor(s) at the preconstruction safety meeting.
13. Provide protection of people working below you in shafts. This may be netting or plywood decking. Provide proper "warning" or "danger" signage as required.
14. If work requires equipment i.e. articulating boom or man lifts, subcontractor is to provide equipment and certified operators.
15. Subcontractor to provide drinking water for own crew at all times.

Project Specific Scope Inclusions:

1. Subcontractor shall provide all necessary plumbing permits.
2. All piping system will be designed to incorporate earthquake restraints as required by the 2009 Seattle Building Code.
3. Plumbing systems in accordance with 2009 Uniform Plumbing Code. Gas piping systems in accordance with 2009 Seattle Fuel Gas Code.
4. **Storm Drainage System** – Furnish and install storm drainage system per the Contract Documents including but not limited to the following:
    a. Foundation drain piping around perimeter of exterior foundation wall only included. The storm drainage system will be designed and installed to drain roof and patio areas. The number and arrangement of roof drains will meet the amount

designated in the BOD and also be designed to suit the building configuration, Uniform Plumbing Code, and good engineering practice.

b. Piping for overflow roof drain shall connect to the vertical piping of the primary roof drainage system. Combined secondary and primary roof drain system shall be sized based on double the rainfall rate, namely 2 inches per hour.

c. Foundation drainage CBs and sump structures to be provided per CIVIL.

5. **Sanitary Waste and Vent System** – Furnish and install sanitary waste and vent system per the Contract Documents including but not limited to the following:

   a. The sanitary waste and vent system will serve all fixtures and floor drains which discharge sanitary waste.

   b. Sanitary and Storm to be cast iron where required by acoustical HUD Level II and SSA Acoustics. In suite fixture arms will be PVC, unless located in bedroom walls where they will be cast iron. Sanitary and storm to be PCV in the parking garage, trash, and mechanical rooms.

   c. Floor drains in public spaces shall have nickel bronze plates.

   d. Mechanical rooms and fire pump/riser rooms shall be provided with floor drains, piped to sanitary duplex pump station with a heavy duty grey iron manhole access cover. Provide floor drains at garbage and recycle rooms.

   e. Garage floor drains per plan and specifications.

   f. Final connection to sanitary and storm sewer stubs.

   g. Clothes washer outlet boxes complete with single throw shut off valves and drain that are ADA accessible.

   h. Care will be taken to ensure acoustic considerations are met. All waste risers will be isolated from the structure using neoprene sleeves. Openings will be oversized so that the pipe can be supported from both sides.

   i. Center all a waste lines in vertical walls. Subcontractor will coordinate with Exxel and Architect to make sure plumbing wall dimensions are accurate with 2 weeks of contract execution.

6. Perimeter Footing Drain System - Furnish and install perimeter footing drain system per the Contract Documents including but not limited to the following:

   a. Foundation drains system per Civil.

   b. Provide and install all pumps, piping and controls for the foundation and garage floor drain-pump structures, complete with sediment chamber catch basin/structure and duplex pump station and heavy duty grey iron manhole access cover. Pump station sized for 350 GPM. Drainage rock supplied and installed by others.

   c. Connection to miradrain fitting at shoring wall. Coordinate with Exxel BE foreman to confirm pipe size from drain mat block drains to footing drain.

7. Natural Gas System - Furnish and install natural gas system per the Contract Documents including but not limited to the following:

   a. Provide a 2 psi natural gas distribution system. Provide pressure regulating valves to all gas fire equipment.

   b. Gas meter supplied by PSE.

   c. Gas piping to rooftop air handling units and HW tanks.

   d. Installation of owner supplied gas sub-meters for boilers.

   e. Gas piping to each retail area with shut offs.

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f. Provide single common gas supply for water heaters, rooftop HVAC, rooftop BBQ, firepit, fireplace, and range. Locate shutoff valves in accessible locations and coordinate with Exxel Pacific.

g. ~~Provide (2) gas line runs from gas meter location to each of (2) retail spaces capped off for future use.~~ Provide (1) gas stub off house gas main to retail space ceiling. Install owner supplied sub-meter if provided during roughin.

8. Domestic Water System - Furnish and install domestic water system per the Contract Documents including but not limited to the following:
   a. Subcontractor shall provide waste, drainage, and water main tie-ins to utility stubs. Utility subcontractor to provide stub at foundation walls.
   b. Water supply to trash chutes for self-cleaning device.
   c. Final connection to domestic water stub.
   d. Domestic Water System is based upon one zone.
   e. MSI duplex domestic water booster pump.
   f. The domestic cold water and hot water systems will be distributed to each plumbing fixture and the system will consist of a reduced pressure backflow preventer on the incoming water service, Isolation will be provided for ~~each H & C riser and~~ each apartment H & C supply and each toilet and faucet.
   g. Whole Building Domestic Water heaters to be two (2) PVI Conquest 40L130A gas fired water heaters.
   h. Dishwasher water and drainage connections in each apartment
   i. Lavatories and faucets (residential units and common areas).
   j. Kitchen sinks and faucets (residential units and common areas).
   k. Manufactured shock absorbers will be provided for clothes washers and dishwashers.
   l. ~~Make-up water for heat pump loop with pressure reducing valve and backflow preventer.~~
   m. Provide hot and cold water unit shutoff valves (sub-meters to be furnished ~~by others and installed by OneWay).~~ and installed by others). Meter spools/unions to be installed by OWP.
   n. Water meter for each apartment will be supplied by Owner ~~will be installed by Subcontractor~~, meter fittings and spool pieces supplied by Owner.
   o. Care will be taken to ensure acoustic considerations are met.
   p. Landscape irrigation connection points at roofs, courtyards and all planted areas.
   q. Hose Bibs are to be frost free. Coordinate locations with Exxel Pacific.
9. **Plumbing Scope (Floors L1-Roof)**
   a. Water closets
   b. Lavatories and faucets (residential units and common areas).
   c. Kitchen sinks and faucets (residential units and common areas).
   d. Tub/shower one piece insert and faucets
   e. Individual residential unit water shut offs
   f. Furnish escutcheons at finish wall penetrations for trim out i.e. in cabinets below lavatories. Include pipe covers to match fixture color to hide exposed pex piping exiting the wall.
   g. Furnish, install, ~~maintain and remove~~ tub protectors in all tubs. Tub chip repair/replacement for own damage.

h. Bath tub/shower stall to be Aquatic 2603SMTE, White, including grab bars and folding seat at Type A units only. Type B unit stalls to include backing in fiberglass walls. Include Delta R1000MF/T14459 chrome valve and trim.
i. Shower stalls at type B units to be Aquatic 1483EN, with fixed threshold or Fiberfab 48BFFWA with removable threshold, White. Threshold requirement to be determined by architect. Stalls include backing in fiberglass walls. Include Delta R10000MF/T14259 chrome valve and trim.
j. Shower stall at live/work Unit "C" to be Fiberfab 38H1FW, including grab bar and folding seat.
k. Type A unit tub or showers to include Delta RPW336HDF/RP6735 handheld shower.
l. Clothes washer boxes (appliances by others).
m. ~~Planter drains.~~
n. Plumbing fixture package per BOD unless otherwise noted in derivation of contract or alternates.
o. Terrace drains.
p. Domestic gas-fired hot water heater~~s and storage tank per BOD.~~
q. Building irrigation water supply to POC including shut off valve, ~~RPBFP~~ DCVA, install deduct meter by SPU, as required.
r. Roof and over flow drains as required.
s. Residential domestic hot water system will consist of 1 pressure zones.
t. Re-circulating HW system with water heaters ~~and storage tank~~ in the basement.
u. CPVC domestic water pipe (per code) over 2" and PEX domestic water pipe ~~2~~ 3" and smaller. Cast iron waste stacks in units with PVC vent piping.
v. Unit shutoff valves located ahead of hot or cold manifolds.
w. Installation of loops and meter bases for future water meters on hot and cold in each unit.
x. Common Area Restroom Rough In and Fixtures.
y. Water and sanitary stub offs for retail spaces.

10. **Plumbing Scope (P1)**
    a. Garage floor drains at each parking level
    b. Frost free hose bibs. All other hose bibs coordinate locations with Exxel Pacific.
    c. 1 sand/oil separator at bottom level of garage floor drains
    d. **Retail Provisions (L1)**
        i. Provide gas and MPG Cap at retail area with shut off. (off house gas main)
        ii. Provide water and sanitary stub offs at ~~each~~ retail area. Stub cold water over head at retail area C01.
        iii. 4" waste pipe connection available on basement level below Retail Space~~s~~. Assume kitchen/bathrooms to be located against back ~~(north walls of spaces~~), stub sanitary in that zone (coordinate with Exxel and Owner), and assume each space may be sub divided.
        iv. 3" vent connection available at ceiling of retail space~~s~~.

11. **Description of Materials:**
    a. **Residential Unit Trim:**
        i. (83) White "Gerber 21-912" elongated bowl toilet with "Bemis 1500" elongated seat.

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ii. (9) White “Toto CST244”, 17” high ADA elongated toilet or equal with “Bemis 1500” elongated seat.
iii. (92) White “Toto LT221” undercounter lavatory with “Grohe 34-270.001” chrome faucet.
iv. (67) White “Aquatic 2603SMTE” fiberglass tub/shower stall with “Delta R10000MF/T14459 chrome.
v. (25) White “Fiberfab 48BFFWA” fiberglass shower stall with removable threshold with “Delta R10000MF/T14259 chrome.
vi. (6) “Delta” chrome handheld shower at Type A Units.
vii. (67) “Lenova LS18304” undercounter stainless sink kitchen sink with “Grohe 32-665.001” chrome faucet.
viii. (8) “Elkay ELUHAD2115-5” undercounter stainless sink with “Grohe 32-665.001” chrome faucet (at ADA Units only).
ix. (75) Rough-in and connect for Unit dishwasher (appliance to be FBO).
x. (75) Washer rough-in with recessed box and valves (excludes hook-up/placement of appliance).

b. **Amenity/Retail Restrooms, Lobby sink, maintenance rm.:**
i. (2) White “Toto CST244”, ADA elongated toilet with “Bemis 1955” open front seat.
ii. (2) White “Toto LT221” undercounter china lavatory with “Grohe 34-270.001” chrome faucet.
iii. (1) “Lenova PC-SS-ORI-S15” undercounter stainless sink bar sink with “Grohe 32-665.001” chrome faucet.
iv. (1) “Mustee 63” mop sink with “Mustee” wall hung chrome faucet.

c. **Building Systems:**
i. (1) Waste, vent and domestic cold water stub at commercial/retail space.
ii. (2) “Woodford 24” keyless hose bib in parking garage/mechanical rooms.
iii. (4) “Woodford 65” frostproof keyless hose bib for exterior locations.
iv. (1) “Woodford 24” frostproof keyless hose bib with hot/cold water supply at Trash room.
v. (1) “Woodford” hose bib for Dog Wash area at roof deck.
vi. Two (2) PVI Conquest 40L130A gas fired water heaters.
vii. (1) “Armstrong” expansion tank.
viii. (1) “Armstrong” E series hot water circulating pump.
ix. (1) “Watts” backflow valve at domestic water supply.
x. (1) MSI duplex domestic water booster pump.
xi. (1) 4” schedule 40, DWV PVC foundation wall drain around interior of basement foundation walls.
xii. (1) “Zoeller” duplex sump pump with basin for foundation drains.
xiii. (1) “Zoeller” duplex sump pump with basin for garage floor drains.
xiv. (1) PVC control assembly only shown on detail 2, page C0310. (excludes vault, manhole, ladder).
xv. (1) “Quality” Concrete 36”x36” concrete sand/oil basin for parking garage floor drainage.

xvi. (3) "Quality" Concrete CB40, 12"x12" concrete garage floor drain at slab on grade.

xvii. (1) "ProSet" P65X drain with cast iron grate for trash room.

xviii. (2) "ProSet" P65X drain with cast iron grate for level 2 garage parking area.

xix. 2 (~~3~~) NDS DS-090N trench drain w/DS231 cast iron grate at garage ramp areas.

xx. (2) "Watts" cast iron area drains at level 1.

xxi. (2) "Watts" cast iron area drains at level 2.

xxii. (6) "Watts" cast iron roof drain with overflow at level 3 roof deck areas.

xxiii. (10) "Watts" cast iron roof drain with overflow at roof area.

xxiv. (1) "Watts" cast iron roof drain at the dog wash area.

xxv. (1) single common irrigation water supply to point of connection at street level, 3rd floor and roof decks.

xxvi. (1) single common gas supply to serve (2) water heaters, (1) lobby fireplace (1) BBQ, (1) fire-pit at roof deck, and (1) stub to retail space C01.

Note: Proset sleeves to be installed in post tension decks after all wall locations have been snapped or marked on deck forms by others and prior to placement of steel and cables.

12. **Included in Basic Plumbing Bid:**

a. No foundation drainage plan available. We have included foundation drain piping around perimeter of exterior foundation wall only. Piping to be 4" PVC plastic pipe (excludes drain rock, filter fabric, drainage mat and "miradrain" fittings at the foundation wall). Excludes engineering or engineer stamp on foundation drainage design.

b. All vent piping throughout building to be PVC plastic pipe.

c. Waste pipe in retail and amenity areas to be cast iron.

d. Waste pipe to be PVC plastic pipe in parking garage, bike parking, underground and mechanical spaces.

e. Waste stacks in unit walls and ceilings to be cast iron pipe (fixture trap arms and toilet flanges to be PVC).

f. Storm drain piping to be PVC plastic pipe in parking garage and under slab on grade.

g. Roof drain stacks to be cast iron within units, retail and amenity space. Overflow drain pipe to be plastic pipe.

h. Water piping to be plumbed with PEX pipe up to 3" size and 2.5" and larger CPVC pipe to code.

i. Thermal insulation to code on hot water recirculation supply and return mains only.

j. Gas piping to be threaded black iron pipe and fittings (no welded pipe).

k. Waste, drainage and water mains to tie onto utility stubs left by utility contractor at foundation wall.

l. Unit water shut off valves to be located in unit closets, with valves exposed outside sheetrock or inside walls with access panels furnished and installed by others (meters/jumpers to be furnished by others).

m. Water hammer arresters installed per code.

n. "ProSet" sleeve system or equal to be used at post tension decks only.

o. Plumbing design to code with engineered drawings.

B. This subcontract specifically **excludes**:

1. Washington State Sales Tax.
2. Trench drains and drain line shown on page C0300, outside the building foundation, on west side of building.
3. Storm detention vault, ladders, or manhole.
4. Excavation, backfill, fill materials, pea gravel, sand or washed rock inside or outside of building.
5. Placement of sand/oil or pump basins in slab on grade. Export of trench spoils. Drain rock or filter fabric.
6. Pumps systems for storm drain piping. Storm sewer inverts are assumed to be low enough for detention
7. Vault to drain by gravity.
8. Foundation or footing drains outside buildings. Drain mat or adaptors at foundation walls.
9. Sub-slab drainage piping.
10. Exterior downspout piping.
11. Line or low voltage wiring or connections.
12. Emergency electrical shutoffs by others.
13. Fire sprinkler system.
14. Pipe protection or bollards for pipes coming down walls or columns in parking garage.
15. Stud shoe or strap reinforcement of wall studs in plumbing walls.
16. Housekeeping pad for water heaters.
17. Flashing at building siding for hosebibs, water heater vents.
18. Exterior canopy, deck or roof downspouts, scuppers, gutters or overflows.
19. Thermal or acoustic insulation on waste, vent, drain or water piping (except as noted above for circulation main).
20. Wash machine drain pans. Kitchen sink garbage disposals.
21. City water meters. Unit water meters, jumper or unions. Access panels. Sewer hookup. Gas meters.
22. Landscape or planter irrigation system, piping, controls or valves.
23. Exterior side sewers, storm sewers or water service.
24. Waste disposal fees.
25. Hoisting or crane picks of stalls, water heating equipment or roughin materials during roughin (load and off load by OWP).
26. Shower doors, shower curtains/rods. Sink hole cutouts. Garbage disposal supply.
27. Retentions above 5%. Performance or payment bonding.
28. Prevailing wage rates.

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C. The following **alternates and unit prices** (including all markup and fees) may be selected at the option of Exxel Pacific:

1. Fully burdened Labor Rates (rates are valid through the duration of this project):

	Foreman	Journeyman Plumber	Apprentice Plumber
Regular Time	$80.00	$75.00	$46.00

2. Alternates:

Item	Alternate Description	Amount
	Add for icemaker roughin only w/recessed box and valve.	add $11,700
	Add for gas supply to unit cooktops only in each unit.	add $70,400

D. Cost summary breakdown:

Item	Item Description	Amount
1	**Base Bid**	$1,179,300.00
	Total	**$1,179,300.00**

The following provisions and attachments are incorporated into and made a part of this Subcontract Agreement:

Attachment "A" titled "Job Rules and Regulations" dated January 18, 2016.
Attachment "B" titled "Insurance Requirements" dated January 18, 2016.
Attachment "C" titled "Subcontractor Personal Guaranty Form"
Attachment "D" titled "Pre Lien Information" dated January 18, 2016.
Attachment "E" titled "List of Plans" dated January 18, 2016.
Attachment "F" titled "Scaffolding Waiver of Indemnity and Hold Harmless Agreement"
Attachment "G" titled "Construction Impact Management Plan"
Attachment "H" titled "Textura Information"

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4. Under provisions of Article (P) herein, a bond (is) (**is not**) required in this Subcontract.

5. Under provisions of Article (R) herein, the amount of insurance required for this Subcontract is:

	General Liability	Excess Liability	Automobile Liability Stop Gap Liability	Employer's Liability OR
Occurrence:	$1,000,000	$2,000,000 or $5,000,000	$1,000,000	$1,000,000
Aggregate:	$2,000,000	$2,000,000 or $5,000,000	N/A	N/A

*MAJOR TRADES REQUIREMENT: Shoring, Mass Excavation, Mechanical, Electrical, Plumbing, Fire Sprinkler, Drywall, Siding, Roofing, Structural Concrete, Waterproofing.

In addition, the undersigned authorizes Labor & Industries to disclose information regarding our quarterly reporting for workers compensation and our payment status to Exxel Pacific.

IN WITNESS WHEREOF, CONTRACTOR and SUBCONTRACTOR have executed this agreement, effective the date of the last authorized signature unless otherwise agreed.

In addition, **THE UNDERSIGNED CERTIFY** that the provisions at Article (V) were reviewed and mutually negotiated.

By **EXXEL PACIFIC, INC.**
CONTRACTOR (Company Name)

By / Victor Vo, P.M.
CONTRACTOR (Authorized Signature)

EXXELPI073KN
Contractor's Registration Number

601-175-198
State UBI Number

Date

By **One Way Plumbing LLC**
SUBCONTRACTOR (Company Name)

By /Brett Mortimore, Pres
SUBCONTRACTOR (Authorized Signature)

ONEWAWP895BU
Contractor's Registration Number Expiration Date

603-078-218
State UBI Number

27-4605928
Federal Tax I.D. Number

207,548-00
Workers' Compensation Account I.D. Number

423429 00
Employment Security Reference Number

Date

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Subcontract General Conditions

A. OBLIGATIONS AND RESPONSIBILITIES

It is agreed that Subcontractor will assume toward Contractor all obligations and responsibilities which Contractor has assumed toward Owner under the Main Contract to the extent of the work herein subcontracted, and Subcontractor shall be entitled to all privileges and protections granted Contractor by Owner under the Main Contract, except in the case of conflicts (see Paragraph 2, page 2 of this Subcontract). In case of conflict between the terms of this Subcontract and the Main Contract, this Subcontract shall control. Subcontractor agrees not to assign or subcontract a substantial portion of the performance of this Subcontract without the prior written consent of Contractor. Subcontractor shall designate in writing all lower-tier subcontractors to Contractor and shall not subsequently change lower-tier subcontractors without Contractor's approval. Contractor shall furnish to Subcontractor, upon Subcontractor's request, the legal description of the premises covered by the Main Contract. A copy of the Main Contract will be made available upon request.

B. DRAWINGS

Subcontractor agrees to furnish drawings, specifications, final selections of materials and other specified items in the quantity required by the Main Contract for approval by Owner or Owner's agent so as not to delay progress of the work.

C. SCHEDULING

Contractor shall give Subcontractor advance notice of anticipated starting date for Subcontract work. Contractor shall consult with Subcontractor on development and update of a construction schedule at Subcontractor's request and shall make such schedule available to Subcontractor at Subcontractor's request. Subcontractor shall timely provide Contractor its scheduling information which conforms and works with Contractor's overall project schedule. The Subcontractor's schedule shall include durations, planned crew sizes, planned procurement dates, planned submissions dates of required shop drawings, project data, and samples for Subcontractor's work, including the activities of its subcontractors, vendors, and suppliers. Subcontractor acknowledges that revisions may be made in the Contractor's schedule, and agrees to make no claim for acceleration or delay by reason of such revisions so long as such revisions are of the type normally experienced in work of this scope and complexity. In the event of changes in the Contractor's schedule, there shall be no change in the actual time durations initially set forth by Subcontractor for its work scope, and Subcontractor agrees to assume any risk for any additional costs it may incur as a result of its work occurring at a different time of the year than was originally anticipated by the parties at the time of signing of this Agreement. Conversely, Contractor and Owner shall have no liability or responsibility for any such added costs. Subcontractor shall start work on the date named by Contractor and shall complete the several portions and the whole of the work herein described at such times as will enable Contractor to timely comply with the Main Contract. Subcontractor shall cooperate with Contractor and other subcontractors. Subcontractor will be bound by any provisions in the Main Contract for liquidated damages and, if liquidated damages are assessed against Contractor by Owner, shall pay such damages for any delay to the extent caused by Subcontractor. The preceding language shall not be construed to deprive Contractor of any right to recover separate or additional damages, for delay to the extent caused by Subcontractor.

D. PAYMENTS

Subcontractor shall submit to Textura applications for payment at such times as will enable Contractor to timely apply, for payment from Owner. Unless otherwise mutually agreed, Contractor shall withhold retainage from Subcontractor. Contractor's obligation to release retainage to Subcontractor shall be subject to proof that there are no unpaid claims, which would provide the basis of a lien against the premises, retainage of payment bond, or subject to (1) withholding of sufficient funds or (2) furnishing an adequate and sufficient payment and performance bond. Subcontractor shall be paid for work to date of Contractor's last progress billing date, as approved by the Architect or Engineer, within ten days after Contractor has received payment for such progress billing. Final payment for work under this Subcontract shall be made within ten days after Contractor has received final or complete payment provided Subcontractor has complete its work and fulfilled each of its obligations under this Subcontract. It is specifically understood and agreed that the payment to the subcontractor is dependent, as a condition precedent, upon the General Contractor receiving contract payments, including retainage, from the project owner. As required by Contractor, and as a prerequisite for any payment, Subcontract shall provide in a form satisfactory to Textura and Contractor partial lien releases, claim waivers and affidavit

of payment from Subcontractor, and its lower-tier subcontractors and suppliers of any tier for the complete portion of Subcontractor's work.

If the Main Contract permits payment for materials delivered to the jobsite or to satisfactory storage facilities, Subcontractor may invoice for materials so delivered shall be at the risk of Subcontractor until acceptance of the Subcontract work. Subcontractor shall notify Contractor of the assignment of the proceeds of this Subcontract prior to such assignment and shall require the acceptance by Assignee of the terms of this Subcontract including the obligation for adjustments and return to Contractor of overpayments. Subcontractor acknowledges that all payments accepted by him or which are otherwise due under this Subcontract shall constitute a trust fund in favor of laborers, materialmen, governmental authorities, and all others who are legally entitled to claim a lien on the premises covered by this Subcontractor or otherwise file a claim against any retainage or payment bond. Subcontractor shall pay its own subcontractors and suppliers all sums owned them within ten days of receipt of payment from or on behalf of Contractor. Subcontractor agrees that no assignment of any payment otherwise due under this Subcontract shall be effective without first securing the express approval of any assignee to the limitations contained in this subsection.

Progress payments shall be deemed advances and are subject to adjustment at any time prior to final payment for errors, overpayment or Contractor's good faith determination that the remaining balance of payment may be insufficient to insure completion of work covered by this Subcontractor to pay lien, retainage, or bond claims. If Contractor determines in good faith that Subcontractor is obligated to Contractor or anyone else for labor, fringe benefits, taxes, supplies, materials, equipment rental or other proper charges against the work covered by this Subcontract, the amount of such obligation may be deducted by Contractor from any payment or payments, including retainage, made under this provision. Provided further that Contractor may from time to time require, and Subcontractor shall promptly provide, a statement in writing setting forth what amounts, if any, are due or payable by Contractor to third parties for labor, fringe benefits, taxes supplies, materials, equipment, or other proper charges against the work in connection with, or arising out of the performance of, this Subcontract. If retainage is held in an interest bearing account, then proportionate interest will be paid to Subcontractor.

Unless otherwise directed or authorized, in writing, by Contractor, all Applications for Payment and all supporting documents (including but not limited to lien waivers, sworn statements, and the like) for Subcontractor shall be in electronic format and shall be submitted to Contractor using the Textura-CPM™ payment management system. Subcontractor shall be responsible for the fees and costs owed associated with Subcontractor's use of the Textura-CPM™ payment management system. Subcontractor shall include a similar provision in its sub-subcontracts and purchase orders. Fees to Subcontractors are calculated as 0.18% (18 basis points) of contract value (plus applicable taxes), with a minimum fee of $50 and a maximum fee of $2,500. All tier-subcontractors and suppliers lien waivers should be forwarded to Exxel Pacific's Bellingham Office.

E. <u>CHANGE ORDERS</u>

1. Contractor and Subcontractor agree that Contractor may add to or deduct from the amount of work covered by this Agreement, and any changes so made in the amount of work involved, or any other parts of this Agreement, shall be by a written amendment hereto setting forth in detail the changes involved and the value thereof which shall be mutually agreed upon between Contractor and Subcontractor. Subcontractor agrees to proceed with the work as changed when so ordered in writing by Contractor so as not to delay the progress of the work, and pending any determination of the value thereof unless Contractor first requests a proposal of cost before the change is effected. If Contractor requests a proposal of cost for a change, Subcontractor shall promptly comply with such request.

2. Subcontractor shall be entitled to receive no extra compensation for extra work or materials or changes of any kind regardless of whether the same was ordered by Contractor or any of its representative unless a change order or written directive therefor has been issued in writing by Contractor and subject to Subparagraph (E)(5) below. If extra work was ordered by Contractor and Subcontractor performed same but did not receive a written order therefor, Subcontractor shall be deemed to have waived any claim for extra compensation therefore, regardless of any written or verbal protests or claims by Subcontractor. Subcontractor shall be responsible for any costs incurred by Contractor for changes of any kind made by Subcontractor that increase the cost of the work for either Contractor or other subcontractors when Subcontractor proceeds with such changes without a written order therefor.

3. Subcontractor agrees that no claim for additional services rendered or materials furnished by Subcontractor to Contractor shall be valid unless written notice is given to Contractor prior to the furnishing of the services or materials.

4. Subcontractor shall promptly provide Contractor in writing, any notice of claim for asserted changes, extra work, time extensions, delays, accelerations, and any and all other such claims for extra compensation of any kind within five (5) working days after the event or commencement of events giving rise to such claim. The failure by Subcontractor to so provide such written notice of any such claims within such five day period shall operate as a waiver and bar of such claims by Subcontractor against owner/tenant, Contractor and any subcontractor/supplier of Contractor, and shall further operate as a waiver of Subcontractor's rights, if any, to assert any statutory claims of lien against the property and improvements of the project arising from such claim.

5. For changes in the work approved by Contractor as provided herein, Subcontractor shall be reimbursed for the Overhead, General Conditions and Fees as stated in Attachment 'A'.

6. No Subcontractor change order request will be accepted by Contractor unless advance written notification of the cause for the request is provided and sufficient time is allowed for Contractor to review alternatives to the costs or to remedy the cause of the costs. Subcontractor has the duty to mitigate all damages for which Contractor may be called upon for compensation.

7. Subcontractor shall work overtime or extra shifts to overcome any delays and shall be reimbursed for overtime premium if and only if directed specifically, in writing, by Contractor for reasons other than delays caused by Subcontractor. Reimbursement shall further be based on hours shown on daily time sheets which have been submitted to, and approved by Contractor on a daily basis. Only the premium portion of such approved overtime exclusive of any markups for overhead, general conditions, and/or fee shall be considered reimbursement.

8. If subcontractor has provided pre-construction design and estimating services, utilizing a Pre-Construction Services Agreement, subcontractor acknowledges it has provided certain services and information to Contractor in regard to its scope of work. Due to Subcontractor's pre-construction involvement, Subcontractor further represents and warrants that it is thoroughly familiar with the requirements of the Project and the Work to be performed under this Subcontract, has carefully studied and compared the Contract Documents with each other and with information provided by the Owner and Contractor is unaware of any error, inconsistency, omission or other defect in the Contract Documents which would require a change order necessitating an upward adjustment of its contract amount, and has no reason to believe the contract amount is insufficient to fully and completely cover Subcontractor's cost of performance.

F. NATURE OF WORK

Subcontractor has satisfied itself as to the nature and location of the work, the character, kind and quantity of material to be encountered, the character, kind and quantity of equipment needed, the location, conditions and other matters which can in any manner effect the work under this Subcontract agreement, and acknowledges that Subcontractor has had a reasonable opportunity to examine the site, all of the Main Contract documents and this Subcontract. Prior to commencing work, Subcontractor shall examine the site and any surfaces upon which work is to be performed, and shall notify Contractor in writing of any conditions which might adversely effect its work; failure to do so will constitute a waiver of entitlement to any additional compensation or contract time arising out of such conditions. Such waiver shall not apply to latent or hidden conditions unknown to Subcontractor following a reasonable examination, unless disclosure of such conditions is required under the Main Contract. This clause shall not be understood to relieve Subcontractor of any additional notice requirements under this Subcontract or the Main Contract.

G. SUBCONTRACTOR EMPLOYER

Subcontractor has the status of "employer" as defined by the Industrial Insurance, Workers' Compensation, Unemployment Compensation, Social Security, and other similar acts of the federal, state, and local government. Subcontractor shall withhold from its payroll applicable Social Security taxes, Workers' Compensation and Unemployment Compensation contributions, and withholding taxes and pay the same; Contractor shall be in no way liable as an employer of, or on account of, any employees of Subcontractor. Before final payment is made under this Subcontract, Subcontractor shall furnish Contractor affidavits certifying that it has complied with these laws, rules and

regulations. Subcontractor hereby agrees to indemnify Contractor for any and all liability under such laws arising from the work performed under this Subcontract.

H. PERMITS, TAXES

Subcontractor shall obtain and pay for all permits, fees and licenses necessary for the performance of this Subcontract and shall pay any and all federal, state, and local taxes, applicable to the work to be performed under this Subcontract. Owner or Contractor shall obtain and pay for the initial building permit applicable to the Main Contract and unless stated otherwise herein shall be responsible, as between Contractor and Subcontractor, for payment of state sales/use taxes applicable to the project.

I. MATERIALS

Materials delivered by or for Subcontractor and intended to be incorporated into the construction hereunder shall remain on the jobsite and shall become property of Owner upon payment, but Subcontractor may repossess any surplus materials remaining at the completion of the contract. All scaffolding, apparatus, ways, works, machinery, and plants brought upon the premises by Subcontractor shall remain his property. It shall be Subcontractor's responsibility to unload, store and protect its materials, to bear the risk of loss thereof and to protect such material against loss until actually incorporated into the work, and until the work is accepted, even though title thereto may previously have passed to the Owner under the preceding provisions, except that Subcontractor shall not bear that portion of such loss to the extent it arose out of the fault of Contractor or its employees.

J. TAKEOVER AND TERMINATION

1. If Subcontractor at any time shall refuse or neglect to supply sufficient properly skilled workmen, or materials or equipment of the proper quality and quantity, or fail in any respect to prosecute Subcontractor's work in a timely and diligent manner, or cause any delay in the project schedule, or cause by any action or omission the stoppage, delay, or interference with the work of Contractor or any other subcontractor, or fail in the performance of any of the covenants herein contained, or be unable to, or fail to promptly pay its debts as they become due, Contractor may at its option at any time after serving written notice of such default with direction to cure in a specific period, but not less than two (2) working days, and Subcontractor's failure to cure the default, terminate Subcontractor's employment by delivering written notice of termination to Subcontractor. Thereafter, Contractor may take possession of the work, materials, tools, and equipment of Subcontractor, and through itself or others provide labor, equipment and materials to prosecute Subcontractor's work on such terms and conditions as shall be deemed necessary and shall deduct the cost thereof, including without restriction thereto all charges, including, but not limited to, reasonable overhead and profit, and all litigation expense, court costs, attorneys' fees and any other necessary or expedient expenses of any nature reasonably incurred in connection with or incidental to such work. Contractor may back charge and deduct the entire cost against Subcontractor as a result of Subcontractor's failure to perform, from any money then due or thereafter to become due to Subcontractor under this Agreement, and to recover all other foreseeable damages.

2. If Contractor so terminates the employment of Subcontractor, Subcontractor shall not be entitled to any further payments under this agreement until Subcontractor's work has been completed and accepted by Contractor. In the event that the unpaid balance due the Subcontractor is greater than Contractor' cost of completion, the difference shall be paid to Subcontractor, but if such expense exceeds the balance due, Subcontractor agrees to promptly pay the difference to Contractor within thirty (30) days after presentation of documented written demand for such excess payment that has been made upon Subcontractor/Supplier by Contractor.

3. To remedy deficiencies or defaults of Subcontractor, Contractor shall be entitled to take over or to cause others to take over any work being performed or to be performed under this Agreement, or any part thereof, together with any tools, equipment, materials and supplies specifically ordered or fabricated for the Project, whether at the jobsite or elsewhere, and to complete such work for the account of Subcontractor by whatever method Contractor deems reasonably practical and expedient; in this regard, Subcontractor acknowledges that it is reasonable to employ a reputable substitute contractor upon a cost-plus or time and material basis to complete partially performed construction work; in such event, no further payments to Subcontractor shall be made until said work is completed and accepted by Contractor.

4. Any attempt by Subcontractor to cure any such claimed default during the notice period must be bona fide and effective to correct the default in order to merit rescission of the notice of default. All warranties shall survive any default hereunder and Subcontractor shall remain responsible to Contractor for such warranty obligations.

5. In the event of Subcontractor's default as set forth above, and at the sole discretion and option of Contractor, Contractor shall have the right to supplement and otherwise add to Subcontractor's work force and/or supervision of Subcontractor's work force, in which case Subcontractor shall continue to remain on the jobsite and shall otherwise fully and timely perform its work obligations under this Subcontract. It shall continue to be fully responsible for all of its duties, including any and all supervision of its work tasks, whether conducted by it or Contractor designees or employees. Any and all costs incurred by Contractor in exercising such option to supplement Subcontractor's work force shall be back charged and deducted from any dollar amounts which may otherwise be due to Subcontractor.

6.1 If Contractor issues, pursuant to Subparagraph 1, above, a written notice of default to Subcontractor and subsequently terminates such Subcontractor arising from such notice of default, and (i) either or both the notice of default and notice of termination are improper or are wrongfully issued, and (ii) Subcontractor was in material breach of this Subcontract, Contractor may seek damages against Subcontractor in a manner consistent with the Washington Court of Appeals case of Ducolon Mechanical, Inc. v. Shinstine/Forness, 77 Wn.App. 707 (1995), provided, however, if it is ultimately determined by an arbitrator, or in other legal action for any reason that the Subcontractor was not in material breach of this Subcontract, then Subcontractor and Contractor agree that such termination shall be deemed a termination for convenience as set forth in Subparagraph 6.3, below.

6.2 If Contractor issues pursuant to Subparagraph 1, above, a written notice of default to Subcontractor and subsequently terminates such Subcontractor arising from such notice of default and it is determined by an arbitrator or in other legal proceedings that (i) either or both such notice of default and termination were improper or wrongful and (ii) Subcontractor was not in material breach of its Subcontract with Contractor, then Contractor and Subcontractor agree that such termination shall be considered a termination for convenience, as set forth in Subparagraph 6.3, below.

6.3 Contractor may at any time, without cause, elect to terminate this Subcontract Agreement, including all Contract Documents, by written notice to Subcontractor. Such termination shall be deemed a termination for convenience. In the event of such termination, the total and sole compensation due Subcontractor shall be that portion of the Schedule of Values which Contractor determines after the date of termination, has been correctly performed by Subcontractor through the date of termination. Any percentages complete previously claimed by Subcontractor, even if previously approved by Contractor, shall not be determinative or binding upon Contractor. Rather, the actual percentages completed of each item in the schedule of values shall be determined at or after the time of termination. In no event shall Subcontractor recover prejudgment interest, lost profits, unabsorbed overhead or any other damages arising from such termination for convenience.

7. Additionally, Contractor may, at its sole option and discretion, elect to sever or otherwise break out individual work scope items which may be contained within Subcontractor's overall work scope ("Severed Work Items") and perform, or retain third parties to perform, such severed work items. In the event that Contractor exercises such option, such Severed Work Items shall be deemed to be (1) terminated for convenience by Contractor if Subcontractor is otherwise in full timely compliance with this Subcontract, or (2) shall be deemed a termination for default if Subcontractor is in default of this Subcontract under Subparagraphs 1 through 5, above. In the event that such termination of the Severed Work Items is deemed to be for convenience, the amount of Subcontractor's Subcontract shall be reduced by that portion of the Schedule of Values assigned or designated to such Severed Work Items. In the event that such termination is deemed to arise from the default of Subcontractor, Subcontractor's Contract amount shall be reduced and/or back charged in the same manner as set forth in Subparagraphs 1 through 5, above.

K. UNIT PRICE

In the event this Subcontract contains unit price items it is understood and agreed that any quantities mentioned are approximations only and subject to change as required by the Main Contract or as ordered and directed by Contractor.

L. MATERIAL QUANTITY

Materials condemned by Contractor, Architect/Engineer, or Owner as failing to conform to the Main Contract, worked or not, shall upon notice from Contractor be immediately removed by Subcontractor. Failure of Contractor to immediately condemn any work or materials as installed shall not in any way waive Contractor's right to object thereto at any subsequent time.

M. JOB DAMAGE

Job damage caused by Subcontractor, its lower-tier subcontractor or supplier of any tier, to work other than its own shall be reported immediately to Contractor and Subcontractor shall be responsible for its repair. Job damage caused by Contractor to work of a Subcontractor shall be reported immediately to Subcontractor and Contractor shall be responsible for its repair.

N. SAFETY

Subcontractor and its lower-tier subcontractors shall take all reasonably necessary safety precautions pertaining to its work and its work performance, including compliance with applicable laws, ordinances, regulations and orders issued by a public authority, whether federal, state, local or other, OSHA/WISHA, and follow Exxel Pacific's Project Safety Plan and Exxel Pacific's Safety Manual in its entirety, as the minimum safety requirements for Exxel Pacific projects.. Subcontractor shall at all times be responsible for providing a safe jobsite and be responsible for the work performance and safety of all employees, personnel, equipment and materials within Subcontractor's or its lower-tier subcontractors' care, custody or control. Subcontractor and its lower-tier subcontractors shall furnish all required safety equipment for its work and ensure all of their employees and lower-tier subcontractors' employees have and wear personal protective equipment in compliance with applicable OSHA/WISHA requirements and Contractor's safety rules, as provided in writing to Subcontractor.

Subcontractor certifies that it and its lower-tier subcontractors are registered contractors. Subcontractor certifies that it and its lower-tier subcontractors maintain a written Accident Prevention Plan and a jobsite-specific safety plan in compliance with applicable OSHA/WISHA regulations. Subcontractor's Accident Prevention Plan should address Subcontractor's role and responsibilities pertaining to safety on the jobsite, training and corrective action and be tailored to safety and health requirements for the work involved. Subcontractor shall have and enforce a disciplinary action schedule in the event safety violations are discovered. When and as requested by Contractor, Subcontractor shall provide information regarding safety matters. Subcontractors are prohibited from using a safety monitor system in lieu of fall protection and fall restraint equipment and devices.

Subcontractor shall promptly provide Contractor with written notice of safety hazard(s) or violation(s) found on the jobsite or of any injury to its or its lower-tier subcontractor's workers incurred on the jobsite.

Contractor's supervisor may direct Subcontractor's superintendent to remove employees not in compliance with the requirements of this Agreement. In the event Subcontractor does not promptly correct its safety violation, Contractor may order Subcontractor to stop work until the violation is corrected, and may correct the violation and charge all costs of compliance to the Subcontractor.

Subcontractor agrees to defend, indemnify and hold Contractor harmless from all WISHA and/or OSHA claims, demands, proceedings, violations, penalties, assessments or fines that arise out of or relate to Subcontractor's failure to comply with any safety-related laws, ordinances, rules, regulations, orders or its obligations hereunder. Contractor may charge against the sums otherwise owing to Subcontractor the Amount of the fine and the fees, costs and expenses incurred by Contractor in the defense of the claims citation and/or fine arising from or relating to the Subcontractor's above-referenced failure.

O. HOUSEKEEPING AND CLEAN UP

Subcontractor shall regularly remove all refuse, waste and debris produced by its operation. Refuse shall not be permitted to accumulate to the extent that it interferes with free access to the jobsite or creates a safety hazard. Avoidance of safety hazards through good housekeeping is an important part of Subcontractor's obligations. In the event Subcontractor or its lower-tier subcontractor fails or refuses to meet these requirements, Contractor may remove refuse and charge all costs to

the Subcontract, provided that Subcontractor has received 24 hours or one full working day, whichever is greater, prior written notice. In the event Contractor determines emergency conditions exist, Contractor may proceed as above without prior notice.

P. BOND

If line number four on the signature page of this Subcontract requires Subcontractor to supply bonds for this project, then Subcontractor shall as its own expense, furnish contractor, within ten (10) days of receipt of this Subcontract, performance and payment surety bonds, acceptable to Contractor, in an amount equal to the Subcontract price. The bonds shall be conditioned upon the full and faithful performance of all terms, provisions, and conditions of this Subcontract and upon payment for all labor, materials, equipment and supplies used in the prosecution of the work described herein.

Q. WORKERS' COMPENSATION

Subcontractor shall furnish to Contractor evidence that it has in force Workers' Compensation Insurance including Employer's Liability, as may be required by the jurisdiction or jurisdictions in which the work is being performed. Where applicable, this shall include United States Longshoremen's and Harbor Workers' Insurance including Coverage B - Employer's Liability (Maritime) with limits not less than the Bodily Injury limits required of the Contractor by the Main Contract, but in no event less than $1,000,000. Such evidence of insurance shall be in the form of an Insurance Certificate issued by an insurer satisfactory to Contractor and shall provide for not less than 45 days prior written notice to Contractor of cancellation or reduction in coverage. In the event Subcontractor fails to maintain any and all insurance required by this Subcontract during the entire life of this Subcontract, Contractor may at its option, and without waiver of other available remedies, purchase such insurance in the name of Subcontractor and deduct the cost of same from payments due Subcontractor.

R. INSURANCE

Except only to the extent modified in Attachment "B" hereto, Subcontractor shall obtain and take the following action with regard to insurance: Subcontractor shall obtain and keep in force during the term of this Subcontract comprehensive general liability insurance with dollar limits and coverage equal to, or greater than, the minimum specified in the Main Contract for Contractor and not less than the types and amounts of coverage noted at the front of this Subcontract. Subcontractor shall furnish to Contractor evidence of this insurance in the same form as described in Article (Q) including the provision regarding notice of cancellation or reduction in coverage. Such insurance shall include contractual liability coverage applicable to the indemnity provisions of this subcontract.

Subcontractor shall name Contractor and Owner as additional insured under Subcontractor's policies, but coverage for such additional insured shall be limited to (1) losses involving the fault (without regard to liability) of Subcontractor or its agents, employees, lower-tier subcontractors of any tier, or (2) in situations where fault is not a requirement for liability, losses caused or contributed to by Subcontractor or its agents, employees, lower-tier subcontractors or suppliers of any tier.

Completed operations coverage is required to be in place for two (2) years after completion of the project.

S. LOWER-TIER SUBCONTRACTORS

Any lower-tier subcontractor shall be bound to Subcontractor to the same extent Subcontractor is bound to Contractor and to the same extent Contractor is bound to Owner. This form may be used for lower-tier subcontracts and when so used, the term Contractor shall mean Subcontractor and the term Subcontractor shall mean lower-tier subcontractor.

T. MODIFICATIONS

No modification to, or waiver of any rights under, this agreement shall be valid or binding on the parties to this Subcontract unless the same be in writing. Failure of Contractor to insist upon strict performance of any term or condition of this Subcontract, or to exercise any option herein conferred on one or more instances, shall not be construed to be a waiver of such performance or option, or of any other covenants or agreements, on subsequent occasions, but the same shall be and remain in full force and effect.

U. DISPUTES

1. In the event of any dispute arising between the parties having a reasonable value greater than Ten Thousand Dollars ($10,000.00), the parties agree that as a condition precedent to commencing any other action as set forth below, the parties shall promptly submit such dispute to mediation before a mutually agreed upon mediator experienced in the construction industry. Such mediation shall occur promptly upon any impasse being reached between the parties concerning such dispute and shall go before the mediator as soon as practically possible, and without regard to the status or progress of the project at the time the dispute first arose.

2. The parties hereto agree that all claims, disputes and other matters in question arising out of, or relating to, this Agreement or the breach thereof shall, at the sole option of Contractor, be submitted to and decided by Arbitration in accordance with the Construction Industry Arbitration Rules of the American Arbitration Association ("AAA"), provided however, that notwithstanding such AAA rules, the arbitration panel shall be comprised of one (1) person, who shall be an attorney substantially experienced in the resolution of construction disputes. Contractor and Subcontractor agree to be finally bound by the award of such arbitration, and without recourse to any court of law other than of enforcement of the arbitrator's decision. This agreement to arbitrate shall be specifically enforceable under the prevailing arbitration law. The award rendered by the arbitrator(s) shall be final, and judgment may be entered upon in accordance with applicable law in any court having jurisdiction thereof. Contractor may invoke and specifically enforce this Subparagraph by providing written notification to Subcontractor of its intention to do so.

3. Should Contractor enter into arbitration or an arbitration agreement with the Owner, other subcontractors or suppliers, or others regarding matters relating to this Agreement, Subcontractor shall agree, if requested by Contractor, to consolidation of its arbitration with Contractor' arbitration with the Owner, other subcontractors, or others, but in any event, Subcontractor shall be bound by the result of the arbitration with the Owner, or others to the same degree as Contractor.

4. If any liens or claims are made by third parties against the Owner or Contractor, the premises or against Contractor' surety and arise out of or are a result of the Subcontractor's performance or nonperformance of this Subcontract, the Subcontractor shall within forty-eight (48) hours after notice from Contractor provide Contractor with written notice why the amount and/or entitlement of the claimant is in dispute and describe the nature of the dispute **and**

(a) Provide Contractor with release of such liens or claims from said claimant; or
(b) Provide Contractor a filed copy of a bond satisfactory to Contractor for liens filed.

5. It is hereby agreed that if the Subcontractor either fails or refuses to provide the above within the prescribed forty-eight (48) hours, the amount of the third party claim or lien is admitted to be due and owing to said claimant and Contractor may at its sole discretion at any time thereafter pay such claimant directly and deduct such amount or amounts from any monies due or to become due the Subcontractor under this Subcontract. If the monies due the Subcontractor under the Subcontract at the time payment is made to said claimant are insufficient to fully reimburse Contractor for any amount so paid, the Subcontractor shall, on written demand of Contractor, pay Contractor the difference between the amount paid by Contractor and the amount offset against the Subcontractor's payment. The Subcontractor hereby releases Contractor from any and all claims of wrongful payment to such claimants.

6. Subcontractor shall carry on Subcontractor's Work and maintain its progress during any dispute and/or arbitration proceedings.

7. Except as may be contrary to application of state statutes and regulations (e.g.: local state safety, taxing, etc. provisions), this agreement shall be governed by the laws of the State in which the project occurs. In any dispute or dispute resolution process, including but not limited to arbitration, jurisdiction and venue shall be Seattle, Washington.

8. In any dispute between or involving Contractor and Subcontractor, the prevailing party shall be awarded its actual attorney fees and costs, together with any and all expert fees and all costs of arbitration, including arbitrator and AAA administrative fees.

9. Notwithstanding any other Subparagraph of this Article to the contrary, in the event a dispute involves the Owner, Contractor, and Subcontractor, Subcontractor agrees that it will not take, or will suspend, any other action or actions (including but not limited to any arbitration(s) or action(s) commenced pursuant to the Federal Miller Act, any state lien statutes, Bond, or Retainage Act(s)) with respect to any such claims and will pursue no independent litigation with respect thereto, pending final determination of any dispute resolution procedure between Owner and Contractor. It is expressly understood and agreed that as to any and all claims asserted by Subcontractor in connection with this Project arising from the actions or fault of the Owner, Contractor shall not be liable to Subcontractor for any greater amount than Owner is liable to Contractor, less any markups or costs incurred by Contractor. As to any claims asserted by Subcontractor for or on account of acts or omissions of Owner or its agents or design professionals, at the sole option of Contractor, Subcontractor agrees to prosecute such claims in Contractor' name. For any amount recovered or collected (whether through proceedings or settlement) by Subcontractor, Contractor shall be entitled to 10% of such amount received or collected as its markup for such claims. Subcontractor shall have full responsibility for preparation and presentation of such claims and shall bear all expenses thereof, including attorney fees.

V. INDEMNIFICATION

Subcontractor agrees to defend, indemnify, and hold harmless Contractor from any and all claims, demands, losses, and liabilities to or by third parties arising from, resulting from, or connected with work performed or to be performed under this Subcontract by Subcontractor, its agents, employees and lower-tier subcontractors and suppliers of any tier, even though such claims may prove to be false, groundless or fraudulent, to the fullest extent permitted by law and subject to the limitations provided below.

Subcontractor's duty to indemnify Contractor shall not apply to liability for damages arising out of bodily injury to persons or damage to property caused by or resulting from the sole negligence of Contractor or its agents or employees. Subcontractor's duty to indemnify Contractor for liability for damages arising out of bodily injury to persons or damage to property caused by or resulting from the concurrent negligence of (a) Contractor, its agents or employees, and (b) Subcontractor, its agents, employees and lower-tier subcontractors or suppliers of any tier shall apply only to the extent of negligence of Subcontractor, its agents, employees and lower-tier subcontractors or suppliers of any tier.

Subcontractor specifically and expressly waives any immunity that may be granted it under the Washington State Industrial Insurance Act, Title 51 RCW. Further, the indemnification obligation under this Subcontract shall not be limited in any way by any limitation on the amount or type of damages, compensation or benefits payable to or for any third party under workers' compensation acts, disability benefits acts, or other employee benefits acts; provided Subcontractor's waiver of immunity by the provisions of this paragraph extends only to claims against Subcontractor by Contractor, and does not include, or extend to, any claims by Subcontractor's employees directly against Subcontractor.

Subcontractor's duty to indemnify Contractor for liabilities or losses, other than for bodily injury to persons or damage to property caused by or resulting from negligence, shall apply only to the extent of the fault of Subcontractor, its agents, employees and lower-tier subcontractors or suppliers of any tier, except in situations where fault is not a requirement for liability, in which case indemnity will be provided to the extent the liability or loss was caused by Subcontractor or its agents, employees, lower-tier subcontractors or suppliers of any tier.

Defense cost recovery shall include all fees (of attorneys and experts), and costs and expenses incurred in good faith. In addition, Contractor shall be entitled to recover compensation for all of its in-house expenses (including materials and labor) consumed in its defense.

W. SUBORDINATION

Should the Main Contract or the Owner's lender or title company require the Contractor to subordinate the priority of its lien rights pursuant to RCW 60.04 et seq. ("Lien Rights") to any security instrument recorded against the real property upon which the Work is performed and for which the Owner's Lender is the beneficiary of the security instrument ("Lender's Deed of Trust"), Subcontractor agrees that its Lien Rights shall likewise be subordinated to the Lender's Deed of Trust and it will execute any and all documents required by the Owner, Lender or title company to effectuate the subordination . Nothing in this Subordination provision shall be construed to limit Subcontractor's Lien Right other than the priority of its claim of lien against the Lender's Deed of Trust.

X. MISCELLANEOUS

This Subcontract shall be considered to have been made in and shall be interpreted under the laws of the State of Washington. The site of any arbitration or venue of any lawsuit arising out of this Subcontract or the work hereunder shall be at Whatcom County, Washington. Any written notice, required to be given, to a party shall be hand-delivered or delivered to the address of that party indicated above. Subcontractor shall comply with all federal, state and local laws, regulations and orders prohibiting discrimination on the basis of race, religion, sex or national origin. This Subcontract represents the final understanding of the parties and Contractor assumes no responsibility for any different understanding or any representations made by any of its officers, agents, or others prior to the execution of this Subcontract unless expressly stated herein. Both parties agree that they have consulted with an attorney or have had the opportunity to consult with an attorney concerning the terms and conditions of this Subcontract Agreement, and that all provisions have been negotiated and mutually agreed to, and that accordingly, any ambiguities in this Subcontract Agreement shall not be construed in favor of, nor against any party.

Y. COUNTERPARTS

This Subcontract may be signed in counterparts. Each signed counterpart shall be deemed an original and all counterparts together shall constitute one and the same Subcontract. Electronically transmitted signatures (e.g. facsimile or in .pdf format) shall be treated as original signatures.

THE CORA APARTMENTS
ATTACHMENT "A"
January 18, 2016
Job Rules and Regulations

1. Billings
2. Lien Releases
3. Change Order Markup
4. Joint Checks
5. Jobsite Safety
6. Safety Violations
7. Reliance Upon Verbal Direction/Change Orders
8. Contract Close-Out
9. As-Built Drawings
10. Backcharges
11. Schedule
12. Jobsite Safety / Scheduling Meetings
13. Inspections
14. Inferior Work
15. Job Clean-Up
16. Submittals
17. Storage & Security
18. General Items
19. Daily Diary
20. Storage, Access & Hoisting
21. Temporary Services
22. Project Requirements
23. Layout and Controls

1. **Billings.** Unless otherwise directed or authorized, in writing, by Contractor, all Applications for Payment and all supporting documents (including but not limited to lien waivers, sworn statements, and the like) for Subcontractor and its sub-subcontractors and suppliers, shall be in electronic format and shall be submitted to Contractor using the Textura-CPM™ payment management system. Subcontractor shall be responsible for the fees and costs owed associated with Subcontractor's use of the Textura-CPM™ payment management system. Subcontractor shall include a similar provision in its sub-subcontracts and purchase orders. Fees to Subcontractors are calculated as 0.18% (18 basis points) of contract value (plus applicable taxes), with a minimum fee of $50 and a maximum fee of $2,500.
Subcontractor's monthly Pay Applications shall be submitted by the 20th of the month for work projected through month end, Pay Applications submitted after the 20th of the month will not be processed until the following month. The Schedule of Values format must be mutually established between Exxel Pacific, Inc. and Subcontractor and signed by both parties before the first Pay Application submittal. Retention is held from all Subcontracts at a rate of Five Percent (5%).
If billing for stored materials, please reference them on your SOV. You must also provide pictures of the stored material, a certificate of insurance evidencing coverage for stored materials and Bill of Sale.
Subcontractor payment will be processed upon Exxel Pacific's receipt of Owner funding via ACH by Textura.

2. Lien Releases. All contract billings must be accompanied by the applicable Conditional Current Month Waiver and Release, completed and submitted through Textura. Each supplier and/or tier-subcontractor are required to use the Exxel Pacific 2-part Conditional and Unconditional form with the proper applicable dates, these forms must be submitted to the Exxel Pacific accounting office (PeggyD@exxelpacific.com) before payment for the billing period will be released. Exxel Pacific reserves the right to issue joint checks to subcontractor and its suppliers/lower tier-subcontractors as deemed necessary by Exxel Pacific.

3. Change Order Markup. Markup on change orders is limited to ten percent (10%) for overhead and five percent (5%) for profit.

4. Joint Checks. Without prejudice to any other rights specified herein or given to the General Contractor by operation of law, the General Contractor specifically reserves the right to write joint checks to the subcontractor and its material supplier and/or subcontractors if in the judgment of the General Contractor, it is necessary to do so in order to insure payment to the materialmen and/or subcontractors. Joint checks or special checks are subject to a $20 charge.

5. Jobsite Safety. Awareness of jobsite safety concerns is emphasized and will be strictly enforced.

a. All Subcontractors and their employees onsite must adhere to Exxel Pacific's safety policy at a minimum and provide their own personal protection equipment. This includes, but is not limited to, the use of safety glasses, hard hats, and appropriate clothing (including Type 2-High Visibility) at all times. In the event subcontractor personnel do not have these items Exxel Pacific has the option to provide the items and subcontractor agrees to reimburse Exxel at $40 per hard hat, and $25 per pair of safety glasses, and $40 per

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Type 2-High Visibility vest or shirt provided. Approved safety glasses that meet the ANSI Z.87 need to be worn 100% of the time while on site.

b. Halogen work/task lights are prohibited from use on site, work lights must be LED.
c. Attend preconstruction safety meeting prior to starting work onsite. This meeting must be attended by Subcontractor's jobsite supervisor(s) and safety officer(s) at a minimum.
d. Designate a competent person from onsite crews to act as Safety Officer and to attend weekly safety meetings while onsite.
e. Each individual performing work onsite must attend the Exxel Pacific Safety Orientation prior to starting work onsite. Upon completion of the orientation, each individual will be given a hard hat sticker specific to the project. Individuals not bearing this sticker are not allowed on the jobsite.
f. At least one supervisor that is First Aid and CPR certified must be present at all times while Subcontractor is performing work onsite. Copies of these certifications are required to be on file with your site specific safety plan.
g. Tennis shoes or shorts will not be permitted.
h. Radios, mp3 players or any personal music player are NOT allowed on the job, NO HEADPHONES.
i. Subcontractors must have a Site-Specific Safety plan, which includes a Site-Specific Fall Protection plan and MSDS/SDS sheets for this project. Both the Site-Specific Safety Plan and the MSDS/SDS must be submitted in written and electronic format. Please note that all contractors must address the items listed in the Required Safety Program Elements section and we ask that all required and scope-specific sections are tabbed accordingly for review. The sections numbered 1 through 20 are dependent on your scope of work and hazard exposure. We also ask that you include a brief statement describing your scope of work, and the tools and equipment you will be using. These documents shall be submitted four (4) weeks prior to starting work onsite and must be on file with Exxel Pacific's superintendent. Under no circumstance shall work commence prior to the submission and acceptance of these documents. Subcontractor's first payment will be withheld until this requirement is met.
j. Subcontractors are prohibited from using a safety monitor system in lieu of fall arrest and fall restraint equipment and devices. Subcontractor to provide all required fall protection gear for your own personnel.
k. Consumption of alcoholic beverages, use of illegal substances and tobacco use of any kind (including electronic cigarettes and chewing tobacco) is strictly forbidden at all times on the project site.
l. Exxel Pacific is a drug free work place and we require post-accident drug and alcohol testing for all workers involved in an accident (whether Exxel Pacific or subcontractor employees) as defined in the Exxel Pacific Safety and Health Manual. Additionally, if Exxel Pacific has reasonable suspicion that that a worker(s) is under the influence of drugs or alcohol, Exxel Pacific does have the right and will remove the worker(s) from the jobsite. Subcontractor must be contracted with a drug and alcohol testing facility prior to starting work, in order to facilitate quick employee testing in the event of an accident.
m. All electrical work shall be performed in compliance with NFPA 70E.
n. For all of Subcontractors crane hoisting activities a qualified Lift Director must be designated by Subcontractor and only qualified and certified riggers and signal persons can be used. All crane assembly and disassembly requires a designated and qualified Assembly/Disassembly Director.
o. Exxel Pacific does not allow Chinese/Asian made rigging to be used for hoisting activities. All rigging to be used for hoisting must meet the following ASME standards: B30.9 for slings, B30.26 for rigging, B30.10 for hooks, and B30.20 for below the hook. Any Chinese/Asian rigging or other rigging found to be unacceptable must be immediately removed from the project. In addition, rigging must be appropriate for the material that is being hoisted, i.e. wire rope for hoisting of reinforcing steel material.
p. Overhead hoisting of pallets is only allowed using picking forks, use of slings for hoisting pallets will not be allowed.
q. Local, State and Federal safety requirements associated with this work are included in this subcontract. Work practices must conform to Washington State Department of Labor and Industries, OSHA, and WISHA Standards.
r. It is the responsibility of the subcontractor to ensure the replacement of guardrails, fencing, etc. if removed for own work. The subcontractor cannot, under any circumstances, leave a fall hazard unguarded.
s. Subcontractor is required to review and sign the Scaffolding Waiver of Indemnity and Hold Harmless Agreement attached to this subcontract. This document must be signed and returned with the signed subcontract, prior to commencing work onsite. Additionally, this document must be signed by Subcontractor's jobsite supervisor(s) at the preconstruction safety meeting.

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initial

Subcontractor's failure to strictly adhere to these rules is cause alone for Contractor to enforce remedies available described in Article J (Takeover) in the main body of this agreement, however, ***subcontractor expressly waives the notice requirement.***

6. Safety Violations. Subcontractor is aware that if Subcontractor, by his acts, negligence, or failure to act, causes the General Contractor to be cited for a Safety Violation from the Department of Labor and Industries or WISHA, that Subcontractor will be held financially responsible for payment of such citation.

7. Reliance Upon Verbal Direction/Change Orders. Subcontractor shall not perform work outside the scope of this Agreement based on verbal instruction from Exxel superintendent or any other person. Work performed outside the scope of this Agreement must first be discussed between a Project Manager of Exxel Pacific, Inc. and subcontractor and the appropriate Subcontract modification executed by both parties. In the event of dispute as to price and time, Exxel will provide written direction to proceed to subcontractor and subcontractor will proceed with the work. The price and time issue will then be addressed as described within the body of the main contract. Failure to strictly conform to this will result in work being done for free.

8. Contract Close-Out. Prior to release of retention, Subcontractor must provide warranties, guarantees, operation and maintenance manuals, as-builts, owners stock and any other items necessary for job close-out. Three (3) copies shall be required of each.

9. As-Built Drawings. Subcontractor will update Exxel's as-built drawings monthly as work progresses. Failure to update the project as-builts will cause monthly progress payment to be withheld. A clean "as-built" set of documents will be in Exxel's job office and reserved exclusively for the record.

10. Backcharges. Should you find yourself in a position of performing work, which will be backcharged to another subcontractor, use the following procedure: ***Follow Item #9 above***. *Notify Exxel superintendent immediately of situation. Exxel superintendent will notify Exxel office and see the appropriate written direction is issued.*

11. Schedule. Subcontractor acknowledges that Exxel controls the schedule of the project and subcontractor must operate the job accordingly or work the overtime hours necessary to complete the subcontractors work in the time allowed. Construction schedule is available upon request from Exxel superintendent. Subcontractor also acknowledges that Exxel's jobsite overhead is payable at $8,436 per day for delays caused to the job.

12. Jobsite Safety/Scheduling Meetings. Subcontractor will attend weekly jobsite meetings to review scheduling and safety while subcontractor's work is in progress.

13. Inspections. Trades must have a supervisor present for all inspections.

14. Inferior Work. Should your work be found to be inferior or incorrect in any way, it is expected that you will correct immediately. Quality control and adequate supervision by your personnel play a vital role in this matter. Variations in design drawings will not be acceptable. Installing your work on or over another subcontractor's work will constitute your acceptance of his work. If a subcontractor's work is found to be inferior, and you installed or covered up the previous trades' work without notifying Exxel, you may be held responsible for the cost of re-work.

15. Job Clean Up. Each subcontractor is responsible for the cleanup and removal of their own trash and debris from the jobsite, unless otherwise provided for in this Subcontract. Clean up will be accomplished on a daily basis**.** ***Subcontractor expressly waives the notice requirement in the main contract in regard to contractor performing clean-up work if subcontractor fails to perform that work.***

16. Submittals. Subcontractor's attention is required in regard to Submittals. Please follow these directions closely. Six (6) copies are required of all submittals, addressed or delivered to the Exxel main office address. Subcontractor is responsible for all costs associated with printing the required quantity of Submittals. Subcontractor is also responsible for all fees charged by local jurisdictions for Submittal review.

17. Storage and Security. Subcontractor is responsible for the storage and security of their materials, tools, and equipment onsite or offsite for the full duration of the project through turnover to Owner.

18. General Items. The following items must be completed in strict conformance with this Subcontract Agreement prior to mobilizing to the jobsite:

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initial

- Required insurance certificate(s)
- Site-specific safety plan
- Name and contact information for Subcontractor's authorized representative and emergency telephone numbers.

19. Daily Diary. Subcontractor shall complete its required jobsite daily diary and submit it to Exxel Pacific's supervision at the end of each shift.

20. Storage, Access, Hoisting:

a. Subcontractor shall comply with the Construction Management Plan as outlined in Attachment G.

b. Subcontractor shall coordinate its material and equipment deliveries to the site with Exxel Pacific to minimize conflicts. Storage at the site must be at locations approved by Exxel Pacific to utilize allowable space and to eliminate interference with work performance. Protection of Subcontractor's stored items is Subcontractor's responsibility, including keeping material off the grade or floor to prevent water damage.

c. Unless specifically stated otherwise, the following functions will be provided complete by Subcontractor as required for its operations: Special access requirements, provisions for movement and flow of Subcontractor equipment and materials, staging and scaffolding, rigging, special heat and/or light requirements and jobsite storage area preparations.

d. All scaffolding, ladders, staging, and rigging required for Subcontractor's operations shall be furnished, erected, maintained, dismantled and removed by Subcontractor and must comply with all applicable regulations and codes. Subcontractor shall properly secure its scaffolding units to prevent toppling or excessive movement during inclement weather.

e. Where arrangements have been made for the use of any of Exxel Pacific's hoisting equipment, it will be understood that this arrangement applies only within the limits and capacities of Exxel Pacific's on-site equipment.

f. Subcontractor agrees to restore and/or reimburse Exxel Pacific's cost to restore any of Exxel Pacific's equipment, tools or facilities damaged by Subcontractor.

g. Any hoisting, moving or handling of Subcontractor's materials, tools & equipment is the responsibility of Subcontractor. Subcontractor's personnel shall be trained in tower crane hand signaling & safety, and shall be responsible for its hoisting means and rigging from the hook. The crane's use is prioritized for critical path activities which shall receive priority over non-critical activities. Subcontractor is responsible for all necessary rigging from the main hook associated with hoisting for its work. It is the responsibility of Subcontractor to certify the weights of all Subcontractor's loads to be hoisted.

21. Temporary Services:

a. Exxel Pacific will provide a 20A 120V temporary power source within 100 feet of Subcontractor's work area. Subcontractor shall provide their own GFCI pigtails for plugging their temporary power cords into, as necessary. Subcontractor shall remove and replace any of the temporary power cords which are damaged or have exposed insulation showing. Subcontractor shall not operate any breakers or switches that are part of Exxel Pacific's temporary power system. In the event of any kind of power failure, Subcontractor shall immediately notify Exxel Pacific or the Electrical Subcontractor if so requested by Exxel Pacific.

b. Exxel Pacific will provide safety lighting as required by regulations in stairways and core areas. Subcontractor will provide all additional accessories, cords and lighting required for its operations.

c. Temporary toilet facilities will be provided by Exxel Pacific.

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d. Temporary water will be provided by Exxel Pacific at a hose bib. Hoses, fitted with nozzles with shut-offs, are to be furnished by Subcontractor, if required for the performance of its work. Subcontractor shall shut off hose bibs at the end of each work day so that no hose will remain unattended with water pressure during non-working hours. Drinking water will be provided by Subcontractor in approved containers which shall be maintained by Subcontractor for its own workers.

22. Project Requirements:

a. Subcontractor shall not place any signage of any type at the project site unless specifically approved, in writing, by Exxel Pacific.

b. Subcontractor shall replace its supervisory and/or project management personnel assigned to the project within 48 hours if directed in writing by Exxel Pacific. Subcontractor shall not replace its supervisory and/or project management personnel assigned to the project unless approved in writing by Exxel Pacific.

c. **Stored Materials:** Exxel Pacific has no obligation to make disbursements for materials not incorporated into the improvements unless provided:

(a) Evidence that the materials are stored at a location acceptable to Contractor, Owner & Lender

(b) Evidence that the materials are fully insured to Contractor, Owner & Lender's satisfaction.

(c) Evidence of a UCC filing to perfect Owner and Lender's interest in the materials.

d. In addition to requirements and details indicated in the Contract Documents, Subcontractor shall comply with the requirements of all applicable codes, ordinances and regulations of governing authorities having jurisdiction including to conformance to ADA requirements. Where a conflict exists, the most stringent of the requirements shall take precedence. Subcontractor shall immediately notify Exxel Pacific's supervision, in writing, of any conflict.

e. Any damage due to the negligence of Subcontractor to existing structural or architectural building components, doors, frames, windows, walls, ceilings, and all finished items will be the responsibility of Subcontractor.

f. All Subcontractor's materials in any plenum space or passing through rated construction must meet all governing codes having jurisdiction and the Contract Documents.

g. Subcontractor shall furnish, install and remove all temporary safety measures required for completion of Subcontractor's scope of work including engineered systems as required by WISHA.

h. Subcontractor shall be responsible to ensure Subcontractor's storage and work areas are maintained to provide adequate protection to the public, the facility, and other construction activities.

i. Subcontractor shall be responsible for all parking needs of its employees, consultants, vendors, etc. Loading and unloading of material will occur from designated areas only.

j. Subcontractor shall inspect all areas and surfaces to receive its work and notify Exxel Pacific, in writing, prior to starting work of conditions that may adversely affect its installation, the quality of the final product, or the ability to pass final inspections. Commencement of work constitutes acceptance of jobsite conditions and substrates.

k. Subcontractor is responsible for his own quality control.

l. Subcontractor shall use "no mark" tires on all equipment.

m. Subcontractor shall actively participate in minimizing any water intrusion and/or migration through the building during construction and at final installation. Measures that Subcontractor will be responsible for include, but are not necessarily limited to, the following:

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a) All cast in place blockouts and sleeves shall be extended 2" above structural slab and positively sealed to prevent water on the slab from penetrating to area below.

b) Caps or covers will be installed, sealed and maintained watertight on all penetrations in vertical and horizontal assemblies.

c) Subcontractor shall use **waterproof** fire and/or acoustic caulking at all floor and wall penetrations. Caulking shall be installed at all risers on a floor-by-floor basis to seal all penetrations from leaking from one floor to the next.

d) Any roof or deck penetrations made shall be covered AT ALL TIMES with a watertight barrier to prevent water intrusion at the area of the work.

e) All framed shafts and exterior walls will be caulked and sealed at the bottom track and at all penetrations at the time of installation to prevent water intrusion.

f) Subcontractor is responsible for the safe storage of their materials on and off site and for the protection of their materials from moisture absorption and damage from direct contact with water, sunlight or exposure to detrimental humidity levels

g) Materials should be delivered to site as needed and stored in a manner and environment acceptable to the material manufacturer.

h) Any material installed that exhibits moisture damage or any indication of subsequent mold production will be replaced at Subcontractor's expense unless moisture damage is caused by water intrusion due to the negligence of others.

i) Subcontractor will submit shop drawings for all manufactured and shop built sleeves and details showing how all penetrations will be temporarily and permanently sealed to meet these requirements.

j) Subcontractor's measures for water intrusion and/or migration are subject to the approval of Exxel Supervision.

n. Mock-Up & Performance Testing: All vendors shall participate in all mock-ups & Performance Testing as they relate to their scope. This work may be required to be performed out of sequence. All costs associated with the mock-ups are to be included within the vendor's bid proposal. Proposed project mock-ups include but may not be limited to: (other mockups are outlined in the specifications)
   - Entire Unit Mock-Up
   - Exterior Wall System Mock-Up Performance Testing

o. Subcontractor's activities shall conform to the requirements of the Construction Impact Management Plan (Attachment G) and Subcontractor shall actively participate with the Owner, Contractor, and other subcontractors in the effort necessary to implement the Plan to reduce impacts from construction activities and minimize impacts on neighbors, businesses, and downtown traffic.

p. Subcontractor is responsible for their own traffic control. All flaggers must be certified. This scope shall include off duty police officers, if required.

23. Layout and Controls:

a. Subcontractor shall be responsible for their own entire layout, alignment and leveling of all installations under this scope of work. Exxel Pacific will provide one grid line along the X and Y-axis on the first floor and vertical control point for the building ONLY. Subcontractor is responsible for replacing (at their own cost) all staking, flagging, gridline layouts and/or benchmarks damaged or removed by their personnel in performing this scope of work.

b. Subcontractor to coordinate locations and sizes of all openings in Subcontractor work with respective trades. Subcontractor's failure to coordinate with other trades will result in Subcontractor reworking openings in their work at no additional expense to Exxel Pacific.

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c. Concrete Layout and Coordination: Subcontractor is responsible for coordination of layout and installation of all required embeds, sleeves and the like necessary for its scope of work. All penetrations through PT decks or shear walls shall be sleeved or otherwise blocked-out. Under no circumstances shall Subcontractor drill into or core drill holes through any structural deck or member without prior written authorization by Contractor and review by the Structural Engineer. Any required slab x-ray services and/or core drilling will be the sole responsibility of Subcontractor.

d. Subcontractor shall provide a layout drawing of proposed Access Door types and locations for approval; layout approved locations in the field prior to framing, and furnish the proper sizes and quantities of access doors to the drywall subcontractor for installation. All access doors on the project will be provided by the same manufacturer (first approved).

e. Subcontractor shall be solely responsible for providing locating services for all utilities within the Subcontractor's work areas for Subcontractor's work.

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THE CORA APARTMENTS

Attachment "B"

JANUARY 18, 2016

Insurance Requirements

The following subcontract conditions shall supplement and, where applicable, take precedence over the Main Contract Provisions and the Subcontract General Provisions. Specifically paragraphs "Q and R" of subcontract general conditions. Before subcontractor starts work, the subcontractor must comply with the following insurance requirements.

Subcontractor shall procure and maintain in force during the performance of work under this Subcontract, or as otherwise required, worker's compensation insurance, employer's liability insurance, as further described in this attachment, and such other insurance as may be required by Contractor or the Main Contract, all in accordance with the requirements as set forth in this attachment.

Subcontractor's insurance policy shall include endorsements providing Contractor and Owner with at least forty-five (45) days prior written notice of cancellation or non-renewal. Contractor will have the obligation to provide, or cause Owner to provide, only the builder's risk insurance that is specifically required by the Main Contract with the Owner and will be responsible to Subcontractor only to the extent that any claim for loss or damages that Subcontractor may make is reimbursable to Contractor by such insurance. Subcontractor shall provide insurance against any and all other losses that may occur to the work, tools, equipment, facilities and stored materials, including stored material for which it has been paid, and shall make its own provisions for reimbursement of such deductible amounts as may be applicable to Contractor or Owner's insurance. Subcontractor's liability insurance shall name Contractor and Owner as additional insured parties, along with any other parties required by main contract.

Subcontractor's liability insurance is primary as respects coverage afforded to the Contractor and Owner as additional insured. Prior to starting work, Subcontractor shall furnish Contractor satisfactory evidence in the form of certificates of Insurance and endorsements issued by a duly authorized representative of the insurance carriers, that all required insurance in force. No action of Contractor shall be deemed to constitute a waiver of this requirement.

1. Insurance

1.1 Subcontractor's Liability Insurance

Subcontractor shall purchase and maintain such insurance as will protect it from the claims set forth below which may arise out of or result from Subcontractor's operations under this agreement whether such operations be by itself or by any sub-Subcontractor or by anyone directly or indirectly employed by any of them, or by anyone for whose acts of them may be liable:

a. Claims under worker's compensation disability benefit and other similar employee benefit acts which are applicable to the work to be performed.

b. Claims for damages because of bodily injury, occupational sickness or disease, or death of its employees under any applicable employers liability law.

c. Claims for damages because of bodily injury or death of any person other than its employees.

d. Claims for damages insured by usual personal injury liability coverage.

e. Claims for damages because of injury to or destruction of tangible property, including loss of use there from.

f. Claims for damages because of bodily injury or death of any person or property damage arising out of the ownership, maintenance or use of any other vehicle.

1.2 Subcontractor's Professional Liability Insurance

Subcontractor shall provide evidence of Professional Liability Insurance (Design Liability and/or Errors & Omissions) if they are performing professional services. **This applies to all design/build trades, including, but not limited to: Mechanical, Electrical, Plumbing, Fire Sprinkler, Testing & Survey.**

1.3 Subcontractor' Pollution Liability w/ Mold Coverage

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<u>This applies to all Mechanical, Plumbing, & Fire Sprinkler Subcontractors. If the project contains contaminates, it is also a requirement of the Excavation, Shoring & Demolition Subcontractors.</u> Subcontractor shall provide a certificate adding Exxel & Owner as additional insured on Pollution Liability policy with coverage to include Mold. Certificate will also contain an endorsement for Primary non-contributory and a waiver of subrogation.

1.4 All crane, derrick and hoisting work shall be in compliance with WAC 296-155 Part L.

1.5 Coverage forms

a. Subcontractor's General Liability insurance shall be written on an industry standard Commercial General Liability Occurance form (CG 00 01) and shall include the following coverage extensions: Stop Gap Liability and Per Project Aggregate (CG 25 03). In addition, the Contractor **(Exxel Pacific, Inc.)**, Owner **(19 W HARRISON LLC), CPA Development, LLC and Columbia Pacific Advisors, LLC** shall be named as **additional insureds** (form CG 20 10 11-85 or equivalent) with respect to work performed by or for the Subcontractor on behalf of the Contractor.

NOTE: Subcontractor will not be paid until their certificate and required forms have met the approval of Exxel Pacific. Additional Insured forms must provide coverage for "your work" versus "ongoing operations". If you provide 2 additional insured forms one for "ongoing" and one for "your work" that will be acceptable.

Subcontractor's general liability and excess liability insurance shall be primary as respects Contractor and Owner, and any other insurance maintained by Contractor and Owner shall be excess and not contributing insurance with Subcontractor's insurance.

Subcontractor shall provide a Waiver of Subrogation waiving their rights of subrogation against the General Contractor and Owner.

Subcontractor shall maintain completed operations liability insurance for a period of twenty-four months following completion of Subcontractor's work.

b. For any work on Apartments or Assisted Living Facilities – Certificate will state "No Exclusion For Work on Apartments".

c. For any work done in a jurisdictional right of way, The City of Seattle, as well as Exxel Pacific shall be listed as additional insured.

d. For any site, earthwork or utility work, policies cannot have a subsidence exclusion.

e. Subcontractor's Auto Liability Insurance shall be written on an industry Business Auto Liability policy form (CA 00 01). Auto Liability Certificate shall include Owner and Exxel Pacific as additional insured and include a primary non-contributory endorsement and a waiver of subrogation.

f. Subcontractor's Workers' Compensation insurance shall be written on an industry standard Workers' Compensation and Employer's Liability policy form (WC 00 00 00), where applicable

In the state of Washington, Subcontractor shall secure its liability for industrial injury to its employees in accordance with provisions of Title 51 of the Revised Code of Washington. Any subcontractor or sub-Subcontractor or employer qualified as a self-insurer in accordance with Chapter 51.14 of the Revised Code of Washington shall so certify by a letter signed by a corporate officer setting forth the limits of any policy of excess insurance covering their employees. Subcontractor shall be responsible for confirming compliance of all sub-Subcontractors with this provision.

g. All insurance companies shall have a Best's rating of "A-VII" or better. This rating is required to be printed on the insurance certificate, for verification purposes.

h. The insurance company, National Fire and Marine, does not meet our insurance requirements and will not be accepted as an insurance carrier for any of Exxel Pacific's projects.

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1.6 Property Insurance

Subcontractor shall provide insurance against any and all other losses that may occur to the work, tools, equipment, facilities and stored materials, including stored materials for which it has been paid, and shall make its own provisions for reimbursement of such deductible amounts as may be applicable to Contractor or Owner's Insurance. For materials being stored by Subcontractor for which they have been paid by Contractor, Subcontractor needs to add Contractor as loss payee for such materials, on either property or installation floater, whichever policy is providing the coverage.

1.7 Subcontractor's Liability insurance, as required by subparagraphs 1.1, 1.2, and 1.3 shall be written for not less than the following limits of liability:

a. **Worker's Compensation**
Statutory Bodily Injury by Accident or Disease

b. **Stop Gap** (OR Employer's Liability)
$1,000,000 Bodily Injury by Accident – Each Accident
$1,000,000 Bodily Injury by Disease – Policy Limit
$1,000,000 Bodily Injury by Disease – Each Employee

c. **General Liability** – Bodily Injury, Personal Injury, and Property Damage
$2,000,000 General Aggregate
$2,000,000 Products and Completed Operations Aggregate
$1,000,000 Personal Injury
$1,000,000 Each Occurrence

d. **Professional Liability** to include Design Liability or E & O (if required, see Section 1.2 above)
$2,000,000 Per Occurrence
$2,000,000 Annual Aggregate

e. **Pollution Liability** including Mold coverage (if required, see Section 1.3 above)
$2,000,000 Per Occurrence (Mold coverage can be per claim)
$2,000,000 Policy Limit

f. **Excess Liability** to extend over General Liability & Automobile Policies
$2,000,000 Per Occurrence
$2,000,000 General Aggregate

$5,000,000 Per Occurrence FOR MAJOR TRADES LISTED BELOW
$5,000,000 General Aggregate FOR MAJOR TRADES LISTED BELOW

g. **Automobile** Liability
$1,000,000 Bodily Injury and Property Damage – Combined single limit per accident for **either**
ANY AUTO **OR** ALL OWNED, SCHEDULED, HIRED AND NON-OWNED AUTOMOBILES

*Written on an industry standard Business Auto Liability policy form (CA 00 01).

MAJOR TRADES: Shoring, Mass Excavation, Mechanical, Electrical, Plumbing, Fire Sprinkler, Drywall, Siding, Roofing, Structural Concrete, Waterproofing.

1.7.1 Certificates of insurance and additional insured endorsements evidencing the above coverages shall be filed with Contractor within (5) working days of award of Subcontract and prior to commencement of the work. Such certificates shall show that Contractor and Owner have been named as primary additional insured's on the general liability policy (and excess liability policy, if any), and clearly show that such policies provide primary coverage with respects to Contractor and Owner. A Waiver of Subrogation endorsement must also be included. In addition, such certificates shall provide Contractor and Owner with 45 days notice in case of cancellation or non-renewal, except 10 days for non-payment of premium.

*Please Note: All insurance requirements are subject to change pending final owner review and requirements.

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THE CORA APARTMENTS
Attachment "C"

SUBCONTRACTOR PERSONAL GUARANTY FORM

A. Guarantor(s) are the shareholders and officers of One Way Plumbing LLC ("Subcontractor").

B. To induce Exxel Pacific, Inc. ("Contractor") to make certain payments on the subcontract enter into between Contractor and Subcontractor dated February 10, 2016 ("Subcontract"), Guarantor(s) agrees to guarantee the obligations and performance of the Subcontractor and to be personally bound on such obligations to the same extent as if the Guarantor had been a party, in his or her individual capacity, to the Subcontract.

GUARANTY

NOW, THEREFORE, for other valuable consideration, Guarantor(s) covenants and agrees as follows:

1. Guarantor absolutely, unconditionally and irrevocably guarantees to Contractor the full, prompt, and faithful performance by Subcontractor of all of its obligations pursuant to the Subcontract and full and prompt payment of any monies, damages, penalties or otherwise which become due to Contractor from Subcontractor relating to Subcontractor's performance or non-performance of the Subcontractor, including the payment of the Subcontractor's suppliers and subcontractors and all extensions and renewals thereof. Guarantor's liability is primary, direct and immediate. The undersigned Guarantor(s) hereby waives notice of default. No extension of time, forbearance, waiver, renewal or alteration of the Subcontractor's obligations by Contractor or any other act, concession or modification shall release or discharge the undersigned Guarantor(s) in any respect. Without releasing or affecting Guarantor's obligations hereunder, Contractor may enforce any rights it may have against any persons or properties liable.

2. Guarantor's obligations and undertakings herein contained shall remain in full force and effect and shall survive termination of the Subcontract.

3. Without diminishing, releasing or discharging Guarantor's obligations hereunder, Contractor shall have the right to exercise the following power and rights in Contractor's sole discretion: To the extent allowed by the Subcontract and existing law, Contractor may change, alter, cancel, renew, extend, decrease or increase the obligations of Subcontractor to Contractor. Contractor may add other guarantors or procure additional guarantees, release other guarantors or guarantees and apply monies or properties received from Subcontractor upon debts regardless of whether the same may be guaranteed hereby, otherwise secured, barred by statutes of limitation or discharged other than by payment. Contractor may exercise rights hereunder in the event of Subcontractor's insolvency, bankruptcy, receivership or assignment for benefit of creditors, in which event all of Subcontractor's liabilities and indemnities to Contractor shall be satisfied in full before Guarantor(s) shall be entitled to participation in the distribution of Subcontractor's assets. Contractor may deal with Subcontractor, Guarantor(s) and any other person liable on the indebtedness, obligations or liabilities to Contractor as Contractor deems advisable.

4. Contractor's rights shall be cumulative and not exclusive. The obligations of Guarantor(s) shall inure to the benefit of Contractor's assigns and successors in interest in the Subcontract and shall be binding upon Guarantor's heirs, successors and assigns.

5. The obligations hereunder of each of the undersigned are independent, joint and several and shall be binding upon their respective heirs, successors and personal representatives. The bankruptcy, death or release from liability hereunder of any one of the undersigned shall not relieve the others from liability hereunder. This Agreement is given and accepted with the express condition that it cannot in any manner be changed, altered, varied, modified, or terminated without prior written consent of Contractor.

6. The undersigned Guarantor(s) agrees to pay and reimburse Contractor on demand for all expenses, including reasonable attorney fees and costs incurred by Contractor in the enforcement of any of its rights hereunder against Guarantor, whether the expenses be incurred in superior court, bankruptcy proceedings or on appeal. Costs shall include those of experts, if so employed.

Dated this _____ day of _____, 20___.

Guarantor: _____

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THE CORA APARTMENTS

Attachment "D"

Pre Lien Information

JANUARY 18, 2016

PROJECT:	The Cora Apartments
	19 W Harrison
	Seattle, WA 98101
TAX PARCEL #	1989201100

CONTRACTOR:	Exxel Pacific, Inc.
	323 Telegraph Road
	Bellingham WA 98226
	(360) 734-2872
LICENSE #:	EXXELPI073KN

OWNER:	19 W Harrison LLC
	737 Olive Way, #3901
	Seattle, WA 98101

ARCHITECT:	VIA Architecture, Inc.
	1809 7th Avenue #800
	Seattle, WA 98101

LENDER:	US Bank
	1420 Fifth Avenue, 8th Floor
	Seattle, WA 98101

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19 W HARRISON
LIST OF CONTRACT DOCUMENTS
Attachment E
January 18, 2016

	GENERAL	
	PREPARED BY VIA ARCHITECTURE	
SHT #	DESCRIPTION	DATE
G0000	TITLE SHEET - COVER & SHEET INDEX	7/24/15
G0001	GENERAL NOTES	7/24/15
G0004	ZONING DIAGRAMS & AREA CALCULATIONS	7/24/15
G0005	AREA SCHEDULES & STREET LEVEL USE DIAGRAM	7/24/15
G0011	CODE COMPLIANCE	7/24/15
G0012	EXITING DIAGRAMS	7/24/15
G0020	ENERGY &THERMAL REFERENCE PLANS	7/24/15
	SURVEY	
	PREPARED BY BUSH ROED HITCHINGS	
1 OF 1	SURVEY	7/16/15
	CIVIL	
	PREPARED BY COUGHLIN PORTER LUNDEEN	
C0000	COVER SHEET	7/17/15
C0100	DEMOLITION PLAN - FOR REFERENCE ONLY	7/17/15
C0200	T.E.S.C. AND EXCAVATION PLAN - FOR REFERENCE ONLY	7/17/15
C0210	T.E.S.C. DETAILS - FOR REFERENCE ONLY	7/17/15
C0220	EXCAVATION SECTIONS - FOR REFERENCE ONLY	7/17/15
C0300	CIVIL SITE PLAN	7/17/15
C0310	CIVIL DETAILS	7/17/15
1 OF 10	SDOT UTILITY MAJOR PERMIT - COVER SHEET	12/18/15
2 OF 10	SDOT UTILITY MAJOR PERMIT - GENERAL NOTES	12/18/15
3 OF 10	SDOT UTILITY MAJOR PERMIT - CONTROL PLAN	12/18/15
4 OF 10	SDOT UTILITY MAJOR PERMIT - CURB, CW, LANDSCAPE, PAVING ETC., ALLEY (NORTH ACROSS W HARRISON ST.)	12/18/15
5 OF 10	SDOT UTILITY MAJOR PERMIT - CURB, CW, LANDSCAPE, PAVING ETC., ALLEY (NORTH)	12/18/15
6 OF 10	SDOT UTILITY MAJOR PERMIT - CURB, CW, LANDSCAPE, PAVING ETC., ALLEY (SOUTH)	12/18/15
7 OF 10	SDOT UTILITY MAJOR PERMIT - CURB, CW, LANDSCAPE, PAVING ETC., WEST HARRISON STREET	12/18/15
8 OF 10	SDOT UTILITY MAJOR PERMIT - VAULT DETAILS	12/18/15
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PREPARED BY VIA ARCHITECTURE

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PREPARED BY DCI ENGINEERS

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BEE BUILDING ENVELOPE CONSULTANTS

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PREPARED BY JENNIE GRUSS INTERIOR DESIGN, inc.

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SPECIFICATIONS PREPARED FOR 19 W HARRISON
PREPARED BY VIA ARCHITECTURE

Division	Description	Date
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000003	PROJECT DIRECTORY	7/24/15
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	DIVISION 01 - GENERAL REQUIREMENTS	
011000	SUMMARY	7/24/15
012500	SUBSTITUTION PROCEDURES	7/24/15
013300	SUBMITTAL PROCEDURES	7/24/15
	DIVISION 02 - EXISTING CONDITIONS	
024116	STRUCTURE DEMOLITION	7/24/15
	DIVISION 03 - CONCRETE	
033000	CAST-IN-PLACE CONCRETE	7/24/15
033713	SHOTCRETE	7/24/15
033816	UNBONDED POST-TENSIONED CONCRETE	7/24/15
035413	GYPSUM CEMENT UNDERLAYMENT	7/24/15

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	DIVISION 04 - MASONRY	
042613	MASONRY VENEER	7/24/15
	DIVISION 05 - METALS	
051200	STRUCTURAL STEEL FRAMING	7/24/15
055000	METAL FABRICATIONS	7/8/15
055213	PIPE AND TUBE RAILINGS	7/24/15
	DIVISION 06 - WOOD, PLASTICS AND COMPOSITES	
061000	ROUGH CARPENTRY	7/24/15
061600	SHEATHING	7/24/15
061800	GLUED-LAMINATED CONSTRUCTION	7/24/15
062013	EXTERIOR FINISH CARPENTRY	7/8/15
062023	INTERIOR FINISH CARPENTRY	7/24/15
	DIVISION 07 - THERMAL AND MOISTURE PROTECTION	
072100	THERMAL INSULATION	7/24/15
074646	FIBER-CEMENT SIDING	7/24/15
076200	SHEET METAL FLASHING AND TRIM	7/24/15
077600	ROOF PAVERS	7/24/15
078413	PENETRATION FIRESTOPPING	7/24/15
079210	INTERIOR JOINT SEALANTS	7/24/15
	DIVISION 08 - OPENINGS	
081113	HOLLOW METAL DOORS AND FRAMES	7/24/15
081416	FLUSH WOOD DOORS	7/8/15
083113	ACCESS DOORS AND FRAMES	7/24/15
083613	SECTIONAL DOORS	7/24/15
084129	METAL CLAD WOOD ENTRANCES AND STOREFRONTS	7/24/15
085313	VINYL WINDOWS	7/24/15
087100	DOOR HARDWARE	7/24/15
088000	GLAZING	7/24/15
089119	FIXED LOUVERS	7/24/15
	DIVISION 09 - FINISHES	
092916	GYPSUM BOARD ASSEMBLIES	7/24/15
093000	TILING	7/24/15
096400	WOOD FLOORING	7/24/15
096519	RESILIENT TILE FLOORING	7/24/15
096566	RESILIENT ATHLETIC FLOORING	7/24/15
096800	CARPETING	7/24/15
097200	WALL COVERINGS	7/24/15
099100	PAINTING	7/24/15
	DIVISION 10 - SPECIALTIES	
102800	TOILET, BATH, AND LAUNDRY ACCESSORIES	7/24/15
102819	TUB AND SHOWER ACCESSORIES	7/24/15
104400	FIRE PROTECTION SPECIALTIES	7/24/15
105500	POSTAL SPECIALTIES	7/24/15
105700	CLOSET AND WARDROBE ACCESSORIES	7/8/15
	DIVISION 11 - EQUIPMENT	
113100	RESIDENTIAL APPLIANCES	7/24/15

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	DIVISION 12 - FURNISHINGS	
122100	HORIZONTAL LOUVER BLINDS	7/24/15
122413	ROLLER WINDOW SHADES	7/24/15
123000	CASEWORK	7/24/15
123661	QUARTZ AGGLOMERATE COUNTERTOPS	7/24/15
	DIVISION 12 - FURNISHINGS	
122100	HORIZONTAL LOUVER BLINDS	7/24/15
	DIVISION 14 - CONVEYING EQUIPMENT	
142123	MACHINE ROOM-LESS ELECTRIC TRACTION PASSENGER ELEVATORS	7/24/15
	DIVISION 31 - EARTHWORK	
310000	EARTHWORK	7/8/15
311000	SITE CLEARING	7/8/15
312500	TEMPORARY EROSION CONTROL	7/8/15
	DIVISION 32 - EXTERIOR IMPROVEMENTS	
321200	ASPHALT CONCRETE PAVING	7/8/15
321600	CONCRETE CURBS AND SIDEWALKS	7/8/15
321813	SYNTHETIC GRASS SURFACING	7/24/15
328400	PLANTING IRRIGATION	7/9/15
329300	PLANTS	7/9/15
	DIVISION 33 - UTILITIES	
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333000	SANITARY SEWER SYSTEM	7/8/15
334000	STORM DRAINAGE SYSTEM	7/8/15
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MEPF NARRATIVES FOR 19 W HARRISON

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DIVISION 22 - PLUMBING	2/13/15
DIVISION 23 - HVAC	2/13/15
DIVISION 26 - ELECTRICAL	2/13/15
DIVISION 27, 28 - LOW VOLTAGE & FIRE ALARM	2/13/15

HAZARDOUS MATERIALS SURVEY FOR 19 W HARRISON
PREPARED BY MED-TOX NORTHWEST

HAZARDOUS BUILDING MATERIALS SURVEY	6/16/14

GEOTECHNICAL REPORT FOR 19 W HARRISON
PREPARED BY PanGEO inc.

GEOTECHNICAL REPORT	7/25/14

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EXXEL PACIFIC, INC.

ATTACHMENT "F"

SCAFFOLDING WAIVER OF INDEMNITY and HOLD HARMLESS AGREEMENT

One Way Plumbing, LLC ("User")
(Name of Company)

User, in consideration of Exxel Pacific, Inc. allowing the user reasonable access to use this equipment hereby releases Exxel Pacific, Inc. from all liability for damages for bodily injury and/or property damage that results from the user's use and access of said equipment for the purpose of building construction and its related activities that occur at:

901 W Harrison Exxel Pacific Job No. 201602
(Name of project)

Address: 19 W Harrison, Seattle, WA 98109

User, in consideration of Exxel Pacific Inc. allowing the user to have access to the scaffolding, agrees to defend, indemnify, and hold Exxel Pacific, Inc. harmless from any and all claims, responsibility or liability, and cost, including but not limited to personnel cost, attorneys fees, court cost, expert witness cost and all other related expenses reasonably incurred by Exxel Pacific Inc. for any losses, fines, penalties, property damage, personal injury, and/or death, or any and all other cost and damages of any kind arising out of or related to the USER'S access or use of the scaffolding, including but not limited to, claims alleging (a) defects or weakness of any scaffold component, (b) negligent or deficient erection or maintenance of the scaffold, (c) improper use, (d) improper or inadequate supervision, or (e) failure to comply with local state or federal laws or regulations.

User agrees, before anyone on their behalf is permitted access to the scaffold to assure that all employees are properly trained as required in WAC 296-874-20072. "Training" by a qualified person, in the safe and legal use of the scaffolding as defined in WAC 296-874-500. User shall have implemented a written fall protection safety plan, performed a site specific hazard analysis and assign a "Competent Person" as required in WAC 296-874-20034 to inspect the scaffold and supervise its use.

By signing this agreement, the undersigned hereby acknowledges all of the above conditions and that they have the authority to sign this document.

To be completed at contract signing.

Corporate officer: _____ Title: _____

Exxel Pacific Supervisor: _____ Date: _____

To be signed during the onsite pre-construction meeting.

Onsite Supervisor: _____ Title: _____

Exxel Pacific Supervisor: _____ Date: _____

☐ *We do not anticipate the use of site scaffolding systems HOWEVER, if we do use onsite scaffolding systems we agree to the conditions outlined above.*

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Attachment 'G'

EXXEL PACIFIC
GENERAL CONTRACTORS

19W Harrison Mixed-Use
Seattle, Washington
MUP #3018158

CONSTRUCTION IMPACT MITIGATION PLAN

June 2015

Approved by Don Smith, SDOT 10/15/2015

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CONSTRUCTION IMPACT MITIGATION PLAN

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A. Intent of the Construction Impact Mitigation Plan

This CIMP is intended to anticipate and reduce the potential environmental impacts from construction activities on neighbors and businesses in the neighborhood surrounding the Project Site located at 19 W Harrison in Seattle, Washington. Management practices that will help achieve this goal include: coordinating with neighbors before and during construction regarding potential environmental impacts and coordination with Seattle Department of Planning and Development (DPD) on street use, parking and traffic routing.

This plan will be coordinated with the DPD Noise Abatement Office, SDOT and King County Metro Transit Division. Implementation of this plan is the responsibility of Exxel Pacific, Inc. and its subcontractors, working with developers, DPD, and the affected community.

B. Construction Hours and Sensitive Receivers

i. Standard Hours of Construction: The majority of construction activities will be limited to standard construction hours between 7 a.m. and 6 p.m. on non-holiday weekdays. Construction workers may arrive at the site prior to standard start times; however, noisy set-up activity will be expressly prohibited prior to 7 a.m. on weekdays.

ii. Weekend Hours of Construction: 9 a.m. to 6 p.m. Saturdays only; no Sunday construction activities. This CIMP is our formal request for Saturday work.

iii. Night Time Work: (6 p.m. to 7 a.m. on non-holiday weekdays) Night time work will be coordinated with DPD Noise Abatement and will generally be limited to only those activities that cannot be performed during standard, evening or Saturday shifts. This would be due to external restrictions or requirements imposed by City or County agencies, such as over-sized load restrictions, work that requires street closures or work that affects public safety. If work is proposed that exceeds the limits of the Noise Ordinance, a variance would be sought and would need to be approved by DPD in advance of such work occurring. To ensure that at least seventy-two-hour advance notice can be provided to the Construction Notification List for this type of work, notice will be provided when the variance is sought rather than waiting until the variance is approved. Notification will also be provided for as required for occasional night time delivery of loads that exceed highway and street limitations; Exxel Pacific, Inc. will attempt to bring these in at night and drop the trailer at the site to be unloaded during the following work day; however, some items may be too large and will need to be unloaded at night. Exxel will notify DPD Noise Abatement when night deliveries may take place.

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C. Construction Contact and Community Liaison

i. Exxel Contact: Exxel Pacific has designated Project Engineer Justin Gotcher to fill the position of "Construction Contact" to the local community to address comments regarding construction operations and schedule. Justin may be reached on his cell phone at (206) 446-7879 or via email at justing@exxelpacific.com.

ii. Communication with Neighbors: Project contact information will be distributed to the adjacent neighborhood (see iii. Community Liason Map) prior to site mobilization. This contact information will include anticipated activities at the site, work hours and general project Information. Project updates will cover street and sidewalk closure, noise and work hour variances, and other construction activities that may affect the surrounding neighborhood. Bulletins will be distributed to central contacts for posting within buildings and/or distribution within internal distribution networks.

iii. Community Liason Map:

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EXXEL PACIFIC
GENERAL CONTRACTORS

D. Construction Milestones

i Demolition

Demolition will include selective demolition involving hand tools and small machinery at the Character Structure and larger pneumatic and hydraulic equipment to remove the bulk of the structure. The demolition contractor will break up the building materials into pieces small enough to be loaded onto trucks and moved off-site for recycling. Impact work shall be limited to 8am to 5pm weekdays and 9am to 5pm weekends and holidays.

ii Shoring and Excavation

Excavation is required to remove soil in preparation for the underground parking structure. Dirt removal will occur to a depth of 20'-25' below grade to the bottom of the lowest perimeter conventional spread footing. Perimeter walls of the excavation will provide natural barriers from excavation equipment noise. As the hole deepens, the walls of the excavation will direct equipment sound upwards.

The general noise and vibration control measures outlined in the Construction Noise and Vibration Management section of this plan apply to demolition and excavation efforts. Additional methods specific to these phases of construction include:

1. Hole excavation: During excavation of the site, an excavator or a ramp export method will be used.
2. Soil nail placement: As the shoring progresses downward with the excavation, soil nails will be drilled, grouted and stressed into the earth wall. The equipment required for this process will not cause any noticeable vibration.

iii Other Major Construction Phases

The general noise and vibration control measures outlined in the Construction Noise and Vibration Management section of this plan apply to the following major construction phases. Additional methods specific to these phases of construction are included in the descriptions of the work.

1. Footings and general concrete work: Concrete will be pumped from a pump truck located on *Harrison St*; no concrete truck queuing will be permitted next to residential use buildings, queuing areas will be designated before excavation and concrete pours upon Subcontractor selection. Concrete trucks will be held and dispatched by radio.

2. Wood Framing: Wood framing will involve weekly deliveries of framing materials, stocking by tower crane and forklift and hand distribution on each floor. Framing will involve pneumatic nailers and hand-held rotary

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saws and drills with limited use of percussive devices such as roto-hammers and power-actuated fasteners at the Level 2 concrete transfer deck to set various devices as required. None of these activities will transmit vibration to adjoining properties.

3. Siding and Building Enclosure: Exterior building enclosure and siding will be placed via scaffolding which will be located entirely on the subject property or on neighboring properties with approved easements or through swing stages.

E. Construction Noise and Vibration Management

Noise Control Measures

Exxel Pacific, Inc. will use the following techniques to minimize construction noise and vibration. Techniques that go beyond code requirements are asterisked.

i Timing Restrictions

Most activities will be limited to standard construction hours as noted in Section B.

a) Impact types of equipment like pavement breakers, pile drills, jackhammers and other impulse noise sources will only be used between 8 a.m. and 5 p.m. on weekdays; approved variance will be required for work outside these hours.

b) Efforts will be made to reduce noise and vibration levels from construction activity during night-time work as defined in Section B. Potentially intrusive work will be accomplished as much as possible during standard working hours. If necessary, quieter work will be performed during the evening hours.

ii Noise Reduction Technologies

a) "Ambient-Sensitive Broadband Alarms" will be used for all trucks and construction vehicles fitted with alarms. Ambient-sensitive alarms adjust the alarm noise level to 10dB above ambient noise level - these alarms operate at a lower dB level than fixed dB alarms. Exxel will further reduce truck noise and audible backup alarms by using a one-way drive through lanes on *Harrison St* for excavation hauling and unloading.

b) Loud talking or other miscellaneous noisy activities are prohibited outside of scheduled working hours. Music is not part of the construction process and will not be allowed on site.

c) Concrete truck staging will be done off-site to minimize the impact of street-level truck traffic. The location of a staging area will depend

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upon subcontractor selection, which wasn't accomplished at the time this plan was developed. Any location is expected to be in an industrial area and trucking routes will be coordinated with SDOT.

d) A compliance statement for this Construction Management Plan will be included in all subcontracts for this Project. **Exxel Pacific** will be responsible for the behavior of all their sub- contractors and vendors for this project. If any of the subs or vendors violates the city of Seattle noise ordinance, **Exxel Pacific** will be issued the violation document.

e) Construction of noise barriers near fixed engines will be on an as-needed basis.

f) Exxel Pacific, Inc. will make every effort to manage the work to avoid noise variances, and any street closures beyond those described in other sections of this plan. However, as is typical for urban construction projects, there will be times when such variances and additional street closures will be required. Neighbors will be notified at least 72 hours in advance of any work requiring noise variances, and street closures beyond those described elsewhere in this plan. ***Contractor Responsibility Clause:*** *Exxel Pacific is responsible for the behavior of all their sub- contractors and vendors for this project. If any of the subs or vendors violates the city of Seattle noise ordinance, Exxel Pacific will be issued the violation document.*

F. Construction Parking Management

Construction workers will be encouraged to use transit service to the project. The site is near most major King County Metro bus routes, as well as routes operated by Sound Transit and Community Transit. Bus information will be made available to construction workers.

To the extent they do drive, construction workers will be encouraged to carpool and use other high-occupancy-vehicle modes of transportation. Peak parking, prior to taking temporary occupancy of the concrete garage structure, the Project has identified a total of 34 parking stalls available for lease on lots within 2-blocks of the job site.

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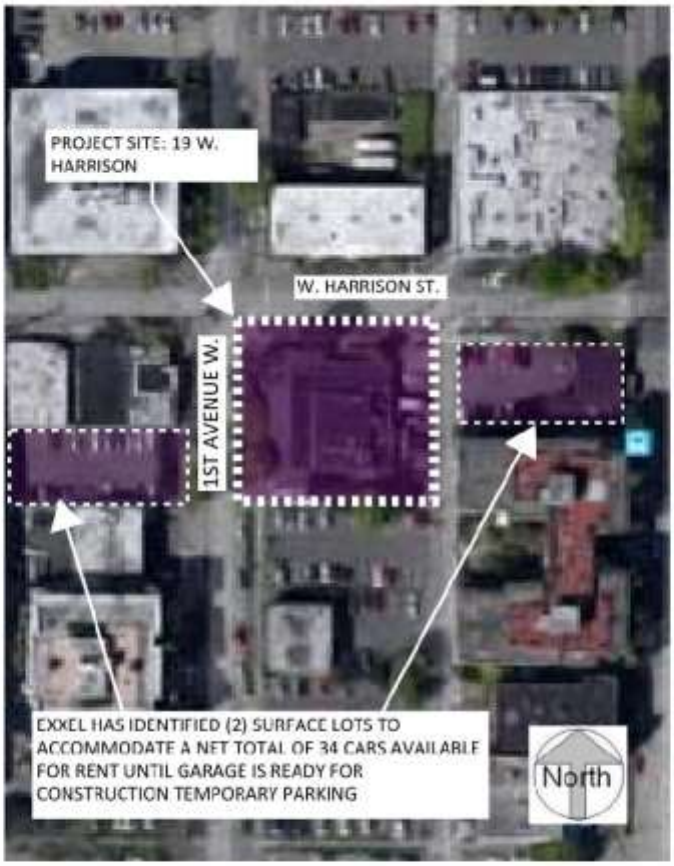

G. Truck Haul Route

See Attachments for Truck Haul and Street Use.

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EXXEL PACIFIC
GENERAL CONTRACTORS

Brian Slick

From:	Smith, Don <Don.Smith@seattle.gov>
Sent:	Thursday, October 15, 2015 9:12 AM
To:	Brian Slick
Subject:	RE: 19 W Harrison Truck Haul Route
Follow Up Flag:	Follow up
Flag Status:	Flagged

Good morning Brian, I will approve as submitted, any changes will need prior approval.

Don Smith
Supervisor, Traffic Permits and Commercial Vehicle Enforcement
City of Seattle Department of Transportation

O: 206.684-5125 | don.smith@seattle.gov

From: Brian Slick [mailto:BrianS@exxelpacific.com]
Sent: Tuesday, October 13, 2015 7:54 AM
To: Smith, Don
Subject: 19 W Harrison Truck Haul Route

Good morning Don, attached are the corrections that you requested. For durations by phase, please refer to the attached project schedule. For work hours, please refer to the attached CIMP, which has been approved by David George. Once you have approved the Haul Route and Narrative, I will incorporate them back into the CIMP and resubmit for Planner approval.

EXXEL PACIFIC
GENERAL CONTRACTORS
Brian L. Slick
Pre Construction Coordinator, LEED GA
Seattle Office
4220 Aurora Ave N
Seattle, WA 98103
Office: 206.453.1005
Cell: 206.402.9568
www.exxelpacific.com

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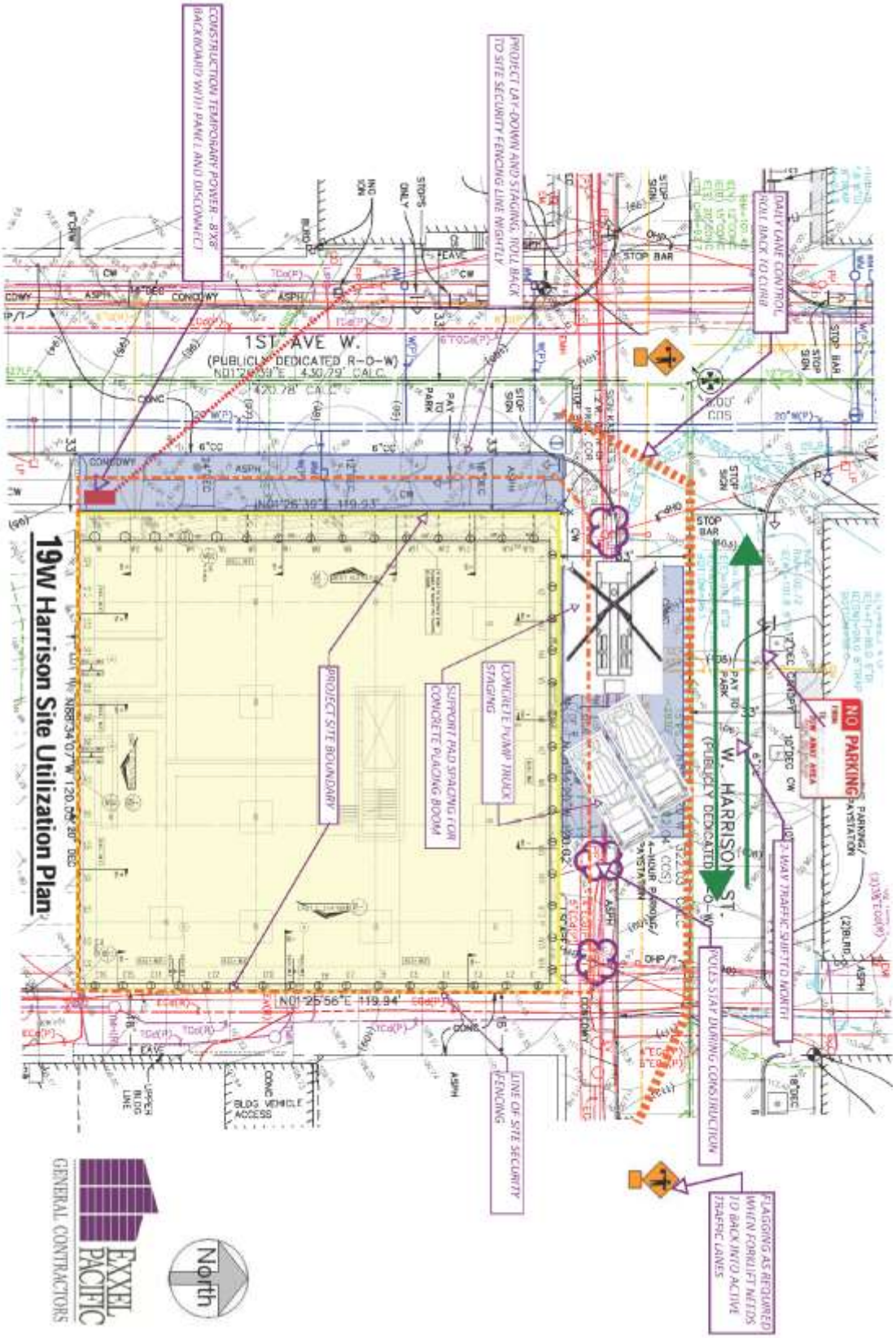
19W Harrison Site Utilization Plan
CONSTRUCTION TEMPORARY POWER - 8'X8' BACKBOARD WITH PANEL AND DISCONNECT
PROJECT LAY-DOWN AND STAGING, ROLL BACK TO SITE SECURITY FENCING LINE NIGHTLY
DAILY LANE CONTROL ROLL BACK TO CURB
1ST AVE W.
(PUBLICLY DEDICATED R-O-W)
W. HARRISON ST.
(PUBLICLY DEDICATED R-O-W)
PROJECT SITE BOUNDARY
SUPPORT PAD SPACING FOR CONCRETE PLACING BOOM
CONCRETE PUMP TRUCK STAGING
NO PARKING
2-WAY TRAFFIC SHIFTED NORTH
POLES STAY DURING CONSTRUCTION
FLAGGING AS REQUIRED WHEN FORKLIFT NEEDS TO BACK INTO ACTIVE TRAFFIC LANES
LINE OF SITE SECURITY FENCING
BLDG VEHICLE ACCESS
UPPER BLDG LINE
North
EXXEL PACIFIC
GENERAL CONTRACTORS

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Haul Route Narrative

Project Summary

The Haul Route has been created for Exxel Pacific and is for MUP #3018158.

The project is located at 19 W Harrison ST and is a #7 floor, mixed-use Residential/Retail building. Please refer to Project Schedule and CIMP for dates and hours.

I. Demolition/Excavation

A. Earthworks Quantity:

Please reference the Construction Schedule for dates and durations. The loading/unloading area for this work is located on 1st AV. W (please reference Traffic Control Plan) with the use of #3 double trailer trucks #3 times daily.

The Excavation is 9,600 approximate TCY and the fill is approximately 550 TCY.

B. Erosion Control:

Construction Erosion Control Measures will be in place and approved prior to any Earth disturbance.

C. Sediment Control:

No sediment shall be tracked into the street or onto paved surfaces. Sediment will be removed from trucks and equipment prior to leaving the site. In the event of failure of the erosion control system resulting in sediment being tracked onto paved surfaces, Exxel Pacific shall immediately implement measures to correct the situation and street sweeping shall be employed on an emergency basis. If street sweeping vehicles are utilized, they shall be of the type that actually removes the sediment from the pavement.

C. Truck Staging

Exxel Pacific will ensure trucks do not stage on or around Seattle City streets. Communication will be made from the loading area so as one truck departs, another may pull in.

D. Additional Use

This Haul Route will be used for deliveries during the entire project.

All ***over size loads*** shall require separate approval for each movement

Any changes to routing will require separate approval

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Reiterate that ***no truck queuing or staging shall be allowed at or in the vicinity of the job site...this includes I-5***

Streets shall be kept clean at all times

All necessary SDOT and DPD permits shall be obtained prior to any trucking activity

At any time truck routing becomes an issue or problem we will reroute trucks as needed.

II. Haul Route Narrative Directions

A. South Bound:

From Interstate 5, trucks will exit at Mercer ST and head westbound on W Mercer ST to 5th AV N. At 5th AV N, trucks will take a left turn heading southbound to Broad ST and follow to Denny Way. At Denny Way, trucks will turn right and follow Denny Way and veer onto Western AV W and take then take a quick right onto 1ST AV W. Trucks will pull in on the eastside of 1ST AV W at 19 W Harrison.

B. North Bound:

When leaving the job site, trucks will pull out and head north through the intersection of 1st AV W & W Harrison ST and follow to W Mercer ST-take a right. They'll continue to Interstate 5 and go north or southbound.

C. Alternate Route for Trucks:

For trucks making deliveries to the south side of W Harrison location, the following route will be followed;

Trucks will pull out onto W Harrison and follow to Queen Anne AV N. and take a right. At Denny Way trucks will turn left at intersection and follow Yale AV to Interstate 5 heading southbound.

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Date: 10/10/2015 **Author:** Christina Moulier, Elite Traffic Solutions, 206-922-9205, TCS #006979 **Project:** 19 W Harrison ST, Seattle, WA

Comments:

The proposed Haul Route is for MUP # 3018158.

This haul route is to be used for the demo/mass excavation (removal of 10,150 TCY of soil), as well as for the deliveries for the duration of this project. It is anticipated that #3 truck and trailers will be used during the demo/mass ex--approximately #3 round trips daily (Please refer to Project Schedule for dates).
The haul route will be used for the duration of the project for deliveries of materials.

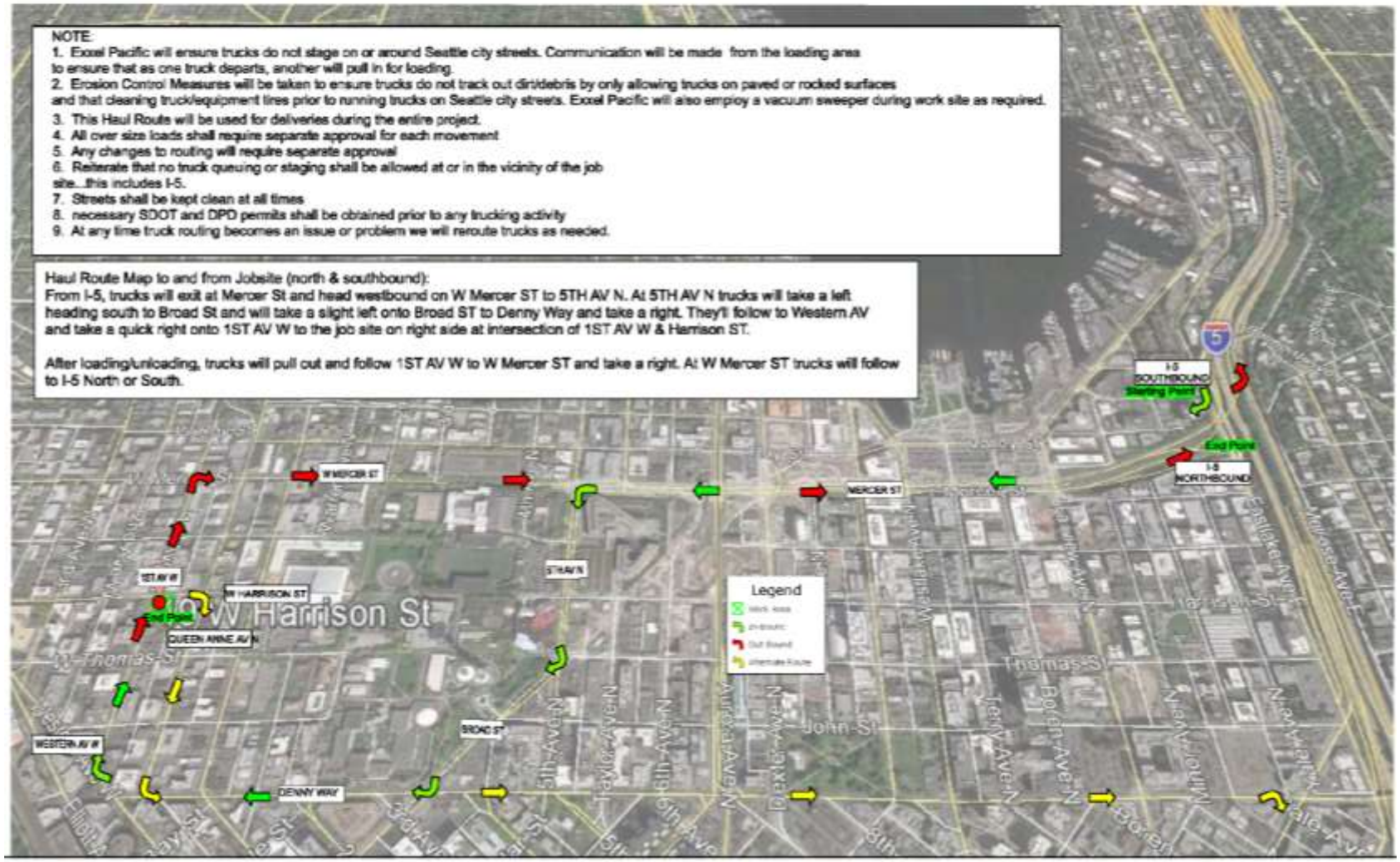
Contact: Brian Slick, Preconstruction Coordinator, Exxel Pacific, Office 206-453-1026, [C] 206-432-9568, BrianS@exxelpacific.com

NOTE:

1. Exxel Pacific will ensure trucks do not stage on or around Seattle city streets. Communication will be made from the loading area to ensure that as one truck departs, another will pull in for loading.
2. Erosion Control Measures will be taken to ensure trucks do not track out dirt/debris by only allowing trucks on paved or rocked surfaces and that cleaning truck/equipment tires prior to running trucks on Seattle city streets. Exxel Pacific will also employ a vacuum sweeper during work site as required.
3. This Haul Route will be used for deliveries during the entire project.
4. All over size loads shall require separate approval for each movement
5. Any changes to routing will require separate approval
6. Reiterate that no truck queuing or staging shall be allowed at or in the vicinity of the job site...this includes I-5.
7. Streets shall be kept clean at all times
8. necessary SDOT and DPD permits shall be obtained prior to any trucking activity
9. At any time truck routing becomes an issue or problem we will reroute trucks as needed.

Haul Route Map to and from Jobsite (north & southbound):
From I-5, trucks will exit at Mercer St and head westbound on W Mercer ST to 5TH AV N. At 5TH AV N trucks will take a left heading south to Broad St and will take a slight left onto Broad ST to Denny Way and take a right. They'll follow to Western AV and take a quick right onto 1ST AV W to the job site on right side at intersection of 1ST AV W & Harrison ST.

After loading/unloading, trucks will pull out and follow 1ST AV W to W Mercer ST and take a right. At W Mercer ST trucks will follow to I-5 North or South.



Textura
Construction Payment Management®

Attachment 'H'

Textura®–Construction Payment Management™: Work Faster and More Efficiently

What Is Textura-CPM™?

Textura-CPM is an Internet-based construction invoicing and payment solution. With the Textura-CPM system, subcontractors can electronically sign and submit their pay applications—including invoices, sworn statements, and conditional and/or unconditional lien waivers. Payments are made electronically via ACH (Automated Clearing House) resulting in faster access to your funds. In addition, Textura-CPM facilitates submission and tracking of compliance documents and sub-tier lien waivers. In short, Textura® has revolutionized the construction payment process. Thousands of subcontractors currently use Textura-CPM to submit their pay applications every month.

Sign Pay Applications and Submit Electronically

Textura-CPM automatically generates the required Pay Application documents and transmits them to your GC electronically at the click of a button.

- Invoices are created by simply entering a percent complete or dollar value by line item of your budget.
- Electronic submission of documents eliminates the expense and inconvenience of fax or hand delivery.
- Invoice amounts are verified with lien waiver and payment amounts, reducing the risk of error.

Receive Payments via ACH

Textura-CPM uses the secure ACH network for electronic deposit of funds to accelerate draw payments.

- ACH will deliver funds faster than a manual check. Payments are made through Textura-CPM directly by the GC and are subject to the terms of your contract.
- ACH works like direct deposit. Funds are immediately available, no waiting for checks to clear.
- Textura-CPM alerts you via email that payment has been disbursed.

Know What is Happening, When It Happens

Textura-CPM offers complete visibility throughout the draw process and notifies users of critical events.

- Receive real-time notifications when a draw is opened, change order issued, payment disbursed, etc.
- Receive email reminders to update expiring insurance documents and notification of non-compliance.
- Online invoice approval and rejection ensures that both parties are informed of final invoice amounts.

Manage Documents Online

Project documents created in or uploaded to the system are available for viewing, printing or downloading to your computer. Textura-CPM will store these documents for a minimum of ten years.

- Pay Application backup documents are submitted quickly and easily via an upload attachment feature.
- Electronic submission & tracking of legal documents such as insurance certificates reduces payment holds.
- Possibility for lost or delayed documents resulting in held payments is virtually eliminated.

What Does It Cost to Use Textura-CPM?

- **0.18% of contract value***
  - Minimum – $50
  - Maximum – $2,500
  - Sub-tier subcontractors – $100
- **Payment Methods**
  ACH (default) or Credit Card (2.5% processing fee)
- **Deferral (Optional)**
  If the usage fee exceeds $250, you may pay $250 upfront and the remaining balance will be paid with your first draw payment. A $45 deferral fee applies.
- **Annual Subscription (Optional)**
  - Covers unlimited use of Textura-CPM
  - Payable in advance for 12 month period
  - Contact Textura to discuss this option

**Plus applicable taxes*

Note: A Service Fee of $22.50 will be added in the event that the usage fee cannot be collected successfully from your bank account or credit card. This is commonly due to a 'debit block' on the bank account.

Technical Requirements:

Textura-CPM is completely web-based—there is no software to install. Users need only:

- Internet access (high-speed recommended)
- Email address for each user
- Adobe Acrobat Reader 6.0 or higher (free download).

Free Training & Support:

Textura supports your training needs with:

- Free webinars available through Textura's website
- Computer-Based Training (CBT) modules
- Individual training by phone
- Classroom training where available.

Support representatives are available to answer your questions at 866-TEXTURA (866-839-8872). Visit the Textura website at www.texturacorp.com.

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Textura™ Corporation

Textura™

Construction Payment Management

Subcontractor Reference Guide

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Textura
Construction Payment Management

Subcontractor Textura Setup and Contract Confirmation

In order to get setup for Textura, your general contractor will need to invite you to create an account. If you have not received the e-mail asking you to create an account, please call 866-TEXTURA (866-839-8872), and a Textura Representative can send you the invitation e-mail to get started. Once you have received the invitation e-mail, follow the steps below to create your account and get setup on your projects. **If you already have an account setup, skip to Step 6.**

1. **Click the <u>second link</u> in your invitation email**
   a. This will take you to a "Create Username" screen.

Note: This is an automatically generated message from the Textura System.

To John Brown of Elmhurst Framing:

Bluff Lake Builders has elected to use the Textura System to manage billing and payment activities relating to various construction projects with which you are involved. By this email, Bluff Lake Builders invites you to use the Textura system. The Textura system is an Internet-based construction payment service that significantly improves today's draw process. Invoices, Sworn Statements and Lien Waivers are automatically generated, electronically signed and available on-line for review and approval – resulting in faster payments. Users benefit from increased productivity, lower costs, reduced risks, improved communication and better cash flow.

Click the link below to obtain simple instructions on how to create an account in the system:
http://d6fcr0940.internal/documentation_rc/resources/training/Textura_User_Setup.pdf

Once you have access to the instructions, click the link below to initiate setting up the account:
http://d6fcr0940.internal/documentation_rc/CreateUsername.asp?initcode=GN4jzcnFHzWRYu&login=1&inbTokenID=1070488

Kind Regards,
Textura System
www.textura.com

2. **Create a Username and Password**
   a. Usernames should contain only letters, numbers, or underscores (_).
      i. Usernames cannot contain any symbols or spaces.
      ii. Example Username: jsmith
   b. Passwords must be alphanumeric and at least 6 characters long.
      i. Passwords cannot contain any part of your name, your company name, or easily guessable words.
      ii. Example Password: js1960
   c. Click "Submit"

   d. Once your username and password have been created, click "<u>Edit Your User Profile.</u>"

3. **Edit your user profile**
   a. Fill out all of the information that has a red asterisk (*) next to it.
   b. Select your user permissions under the "User Can" section.
      i. *Manage Projects*: Allows users to enter invoices and break down schedule of values.
      ii. *Manage Compliance*: Allows users to submit legal documents such as insurance certificates.
      iii. *Sign on Behalf of the Company*: Allows users to sign invoices and lien waivers.

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iv. *Notarize Documents*: Allows users to notarize documents.
    - User must be a notary.

v. All other permissions are not applicable to subcontractors.

c. Once all information is complete, click "Save Profile."

d. If you are a signer or a notary, click "Edit your e-Sign PIN information."

i. Create a 4-6 digit PIN that will be used to apply your electronic signature to invoices and lien waivers. (This is similar to an ATM PIN).
    - All documents on Textura are signed electronically.

e. Click "Submit"

f. Click "Edit Your Organization Profile"

4. **Edit Primary Organization**

a. Fill out all of the information that has a red asterisk (*) or a blue asterisk (*) next to it.

i. You will need your banking information to complete this page.
    - Use the account number in which you would like your money deposited.
        - **PLEASE NOTE: This will be the account in which the Textura fee will be taken out of. Please be sure your account does not have a debit block on it.**
            - If your account **does** have a debit block, please fill out a debit authorization form with your bank to allow debits from Textura Corporation (CIN): 2261212370.

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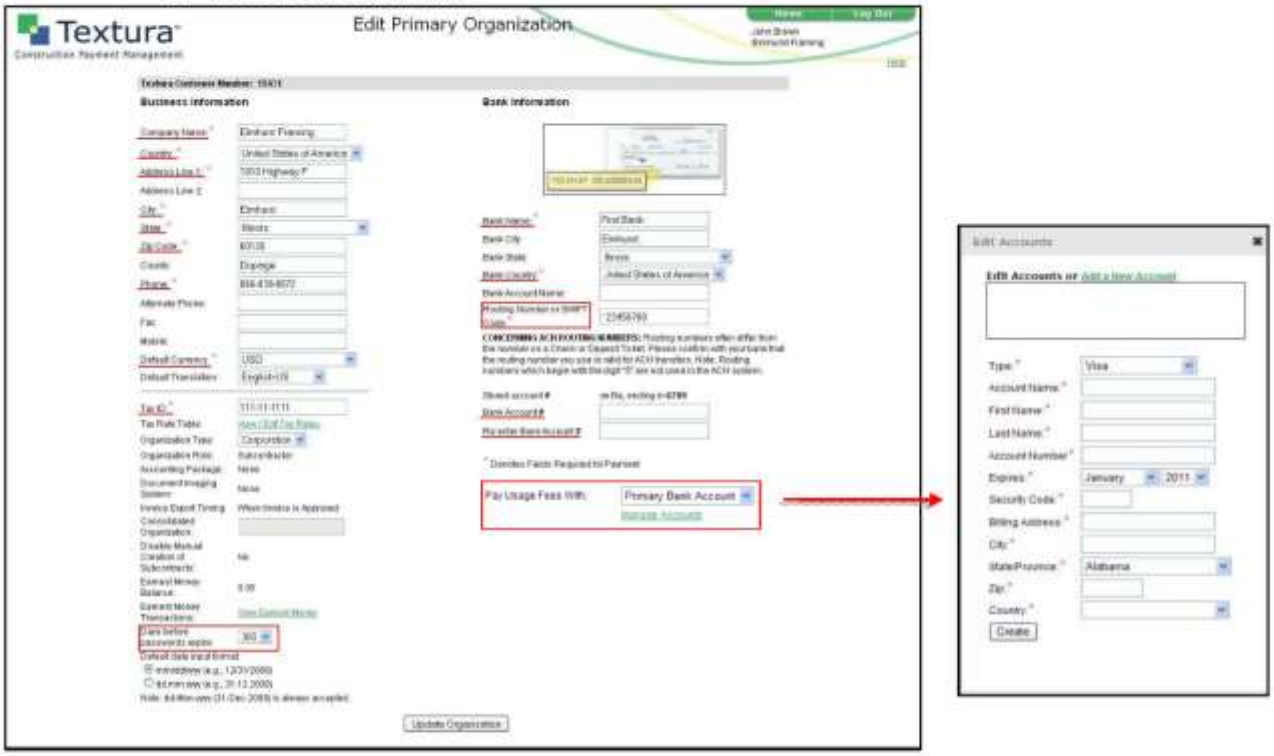
- If you choose to pay the Textura fees via Credit Card click "Manage Accounts" and add your Credit Card information.
  - Be sure to select your credit card next to "Pay Usage Fees With."

b. Click "Update Organization"



5. **Agree to Terms & Conditions**
   a. If you have questions on Textura's Terms and Conditions please call 866-TEXTURA (866-839-8872).

6. **Confirm Contract**
   a. From your home page click on the project name to get to the Project Home Page.
      i. Click "Confirm Contract" on the top left under project actions.

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b. Review all of your contract information from this page.
   i. **PLEASE NOTE: The Textura Usage Fee for this project is displayed on this screen and will be taken out of your bank account or charged to your credit card once you click "Confirm."**
   ii. If the contract is missing change orders, you can still confirm your participation in the project, and then you should contact your general contractor to inquire about your change order status.
   iii. You must confirm your contract before you can submit an invoice.

c. Click "Confirm"

d. Click "Assign Users to Project"

7. Assign Users to Project

a. Make sure there is a check mark in the boxes for Project Manager, Compliance Manager, and Signer.
   i. If you need to create new users to perform these roles you can do so from your home page.
      - Click "Create User" on the left hand side of the Home Page.
         - Once created, you will need to go in and assign the user to the project.
   ii. You are able to have multiple Project Managers, Compliance Managers, and Signers.

b. Click "Save Changes" once all users have been assigned.

You are now setup and ready to begin using Textura. If you need to break down your schedule of values see "How To: SoV Breakdown." When it is time to submit an invoice, you will receive an e-mail letting you know your General Contractor has opened up a draw. If you need assistance invoicing see "How To: Entering Invoices in Textura."

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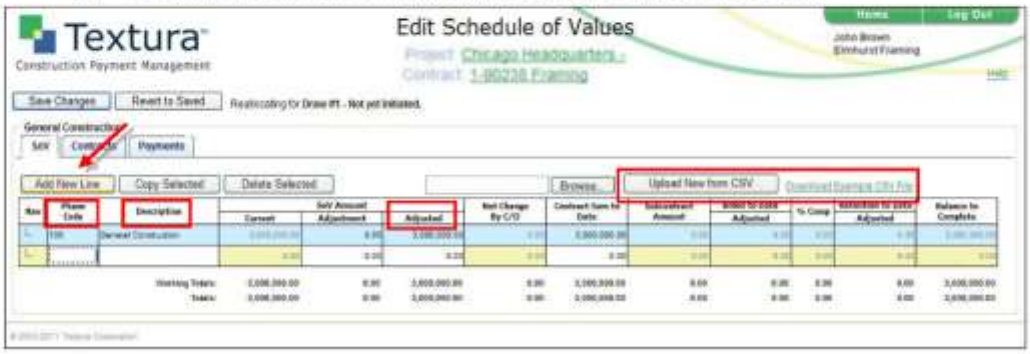
Textura
Construction Payment Management

SoV Breakdown

Once subcontractors have confirmed their participation in a project, they are prompted to edit the budget or the schedule of values (SoV). Subcontractors can either leave the SoV as a single line item or break out the SoV into multiple line items. Whether or not the SoV needs to be broken down is a decision made between the subcontractor and the general contractor.

1. **Login to the Textura System**
    a. Login Page: https://cpm.texturacorp.com/system/Main.psp
    b. Click the project name for which you would like to break down the SoV.
    c. Click "Edit budget for project <Project Name>" under "Project Actions."
        i. You can also edit your SoV by clicking "Edit Schedule of Values" from the SOV/Subcontracts dropdown menu on the blue navigation bar.

2. **Breakout the SoV**
    a. Textura automatically allocates your entire contract value to 1 single line item. If 1 line item is okay click "Save Changes."
    b. If your contractor requires a detailed SoV, click "Add New Line" for each line item needed.
        i. Each line will need a Phase Code, Description and Budget Amount
            - *Phase Code*: Determines the order in which the lines will sort.
                - Lines are sorted by the first #, so if your SoV has multiple lines use leading 0's for the phase codes.
                    - Ex: 001, 002, 003…010…100
            - *Description*: Description of the work being performed on the specific line item.
            - *Budget Amount*: Amount of money scheduled for each line item.
                - This amount should be entered in the **"SoV Amount Adjusted"** column.
    c. If your SoV is very large (over 100 lines) you can upload it from an Excel CSV (Comma Delimited) file.
        i. Click "Download Example CSV File" to format your SoV into a file that can be uploaded.
        ii. You will not need to add each line individually if you choose this option.



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d. As you continue to add new lines, the Working Totals section will remain in red until you have allocated your entire contract value in the **"SoV Amount Adjusted"** column.

e. Once all line items have been added with a Phase Code, Description, and Budget Amount, the Working Totals and Totals will appear in **black** under the "**SoV Amount Adjusted**" column.
   i. There will be red under the "SoV Amount Current" and "SoV Amount Adjustment" columns, however once you click "Save Changes" the red numbers will update as long as the **"SoV Amount Adjusted"** column is balanced.

f. **Please Note: Your SoV lines can only add up to the contract value from the Totals row in the "Sov Amount Adjusted" column. If you have change orders the General Contractor will need to add them to the system before you are able to add them to your SoV.**
   i. See How To: Allocating Change Orders

g. Click "Save Changes"

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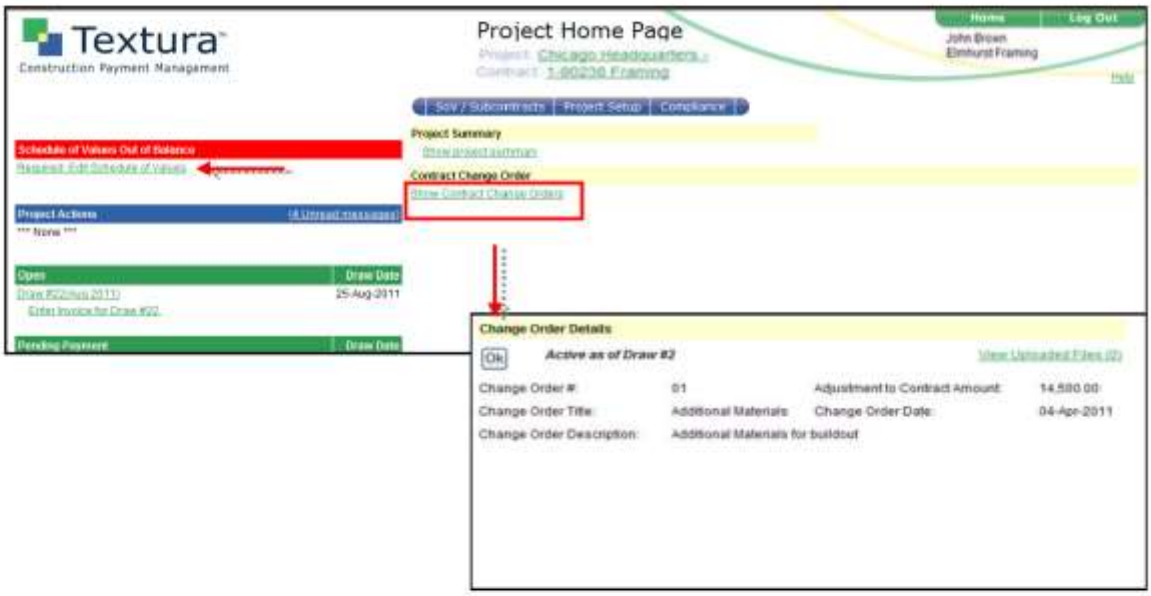
Textura
Construction Payment Management

Allocating Change Orders in Textura

The general contractor will create a change order in Textura to increase or decrease the contract value. You will receive an e-mail once your general contractor adds change orders to Textura. You can access your change orders by clicking on the link in the e-mail notification. You can also access your change orders from the Project Home Page. **Subcontractors are unable to add a change order to their SoV until their general contractor has added the change order to the system.**

1. **Login to the Textura System**
    a. Login Page: https://cpm.texturacorp.com/system/Main.psp
    b. Click the project name for which you have a change order for.
    c. Click "**Show Contract Change Orders**" to view the change order details.
    d. If the change order needs to be added to your schedule of values, a red notification bar will appear stating "Schedule of Values Out of Balance."
        i. Click "**Required: Edit Schedule of Values**" to add the change order to your SoV.
    e. Some change orders are automatically added to your SoV by your general contractor. If this is the case, you will not be prompted to edit your SoV on the left hand side of the Project Home Page.



2. **Allocate the Change Order**
    a. Your SoV will appear with a column outlined in red.
    b. Under the "Save Changes" button you can view the number of change orders that need to be added to your SoV.
        i. Change Orders need to be added individually.
    c. The amount of the change order that needs to be added will appear in red in the "**Allocate**" column.
        i. You can only allocate the amount that is in the header of the "**Allocate**" column.
        ii. In this example a change order for $14,500 needs to be added to the SoV.

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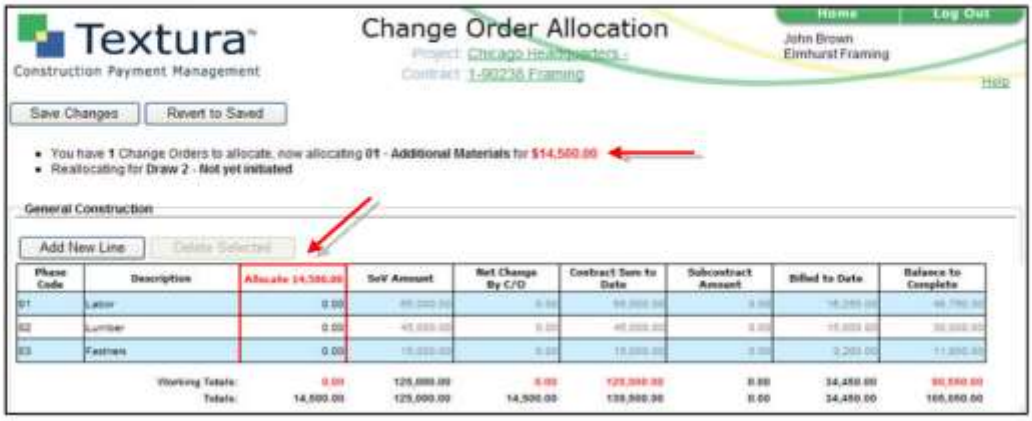
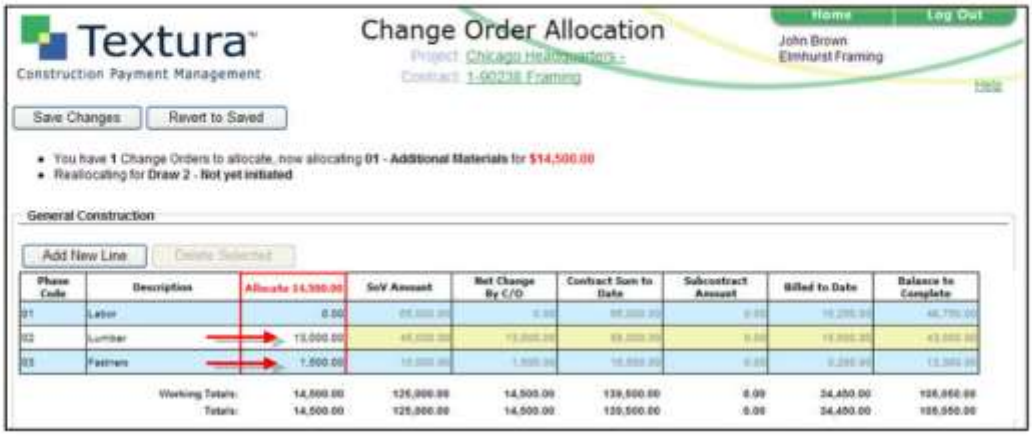


d. There are two ways a Change order can be allocated.

i. Allocate the change order value among the existing line items on your SoV.

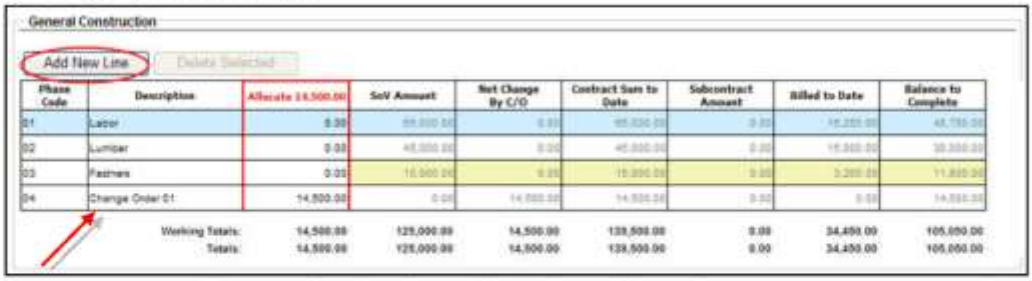
- Ex: Increase line 02 "Lumber" by $13,000 and 03 "Fasteners" by $1,500 for a total of $14,500.
- Once the full change order is allocated, the Working Totals will match the Totals.



ii. Add a new line to your SoV for the change order.

- Click "Add New Line" and put the total Change Order value on the new line item.

iii. Click "Save Changes"



iv. Once all change orders have been allocated you will be taken to a status screen saying **"You have successfully allocated all Change Orders."**

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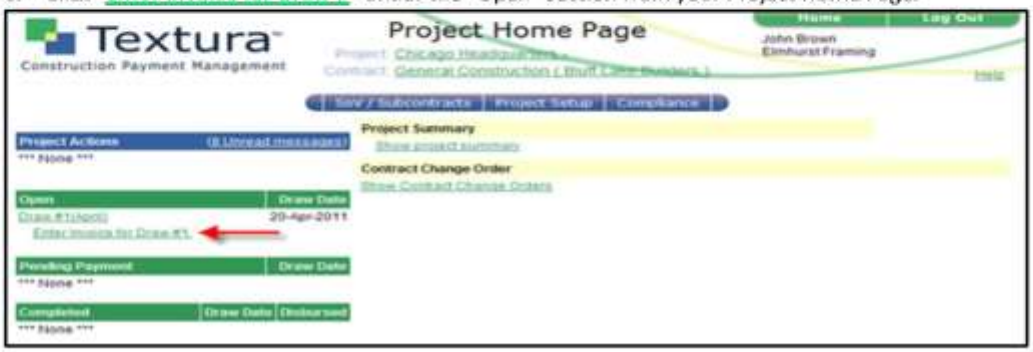
Textura
Construction Payment Management

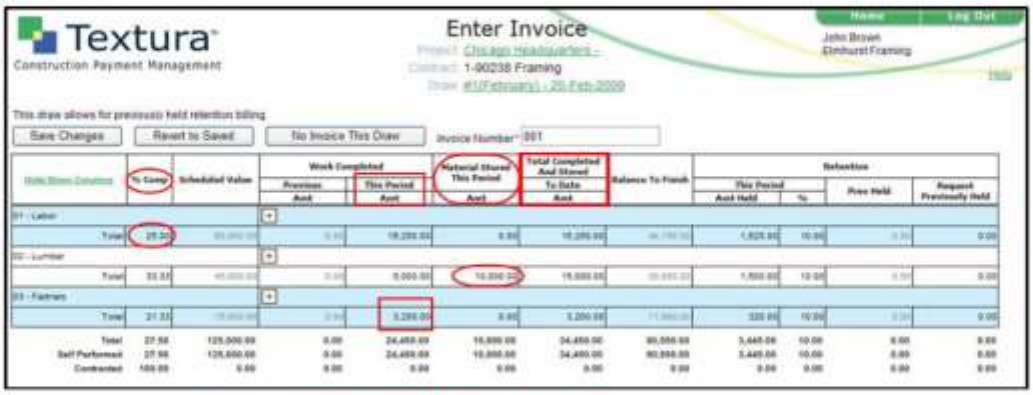
Entering Invoices in Textura

Subcontractors will receive an e-mail notification when a draw has been opened for billing. You can access the "Enter Invoice" screen by clicking on the link in the e-mail notification. You can also access your invoice screen from the Project Home Page. **Subcontractors are unable to submit an invoice until the General Contractor has initiated a draw and invited subcontractors to bill.**

1. **Login to the Textura System**
   a. Login Page: https://cpm.texturacorp.com/system/Main.psp
   b. Click the project name for which you would like to submit an invoice for.
   c. Click "Enter Invoice for Draw #" under the "Open" section from your Project Home Page.



2. **Enter Billing Values**
   a. There are four different ways to enter billing amounts:
      i. *% Comp*: Type the percentage complete for each line item.
      ii. *Work Completed This Period Amt*: Type the dollar value for each line item.
      iii. *Material Stored This Period*: Type any material stored amounts for each line item.
         - This amount will move to Work Completed in subsequent draws.
      iv. *Total Completed And Stored To Date Amt*: Type the total amount completed for each line item.
   b. Retention will be automatically calculated.
   c. Click "Save Changes"



   d. Click Next Steps "Edit Contractors and Material Suppliers"
      i. If your general contractor does not require you to list sub-tier contractor or supplier details, then your Next Step will be "Send to Signer" and you can move to Step 4 of this guide.

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Textura
Construction Payment Management

3. **Edit Contractor and Material Suppliers**
   a. List all suppliers and organizations you have paid and are going to pay throughout the project.
   b. Click "Add New Row" to enter in a new supplier/organization.
      i. Type the name of the organization under "**Org Name.**"
         - If your suppliers are required to sign lien waivers on Textura, then select the organization from the drop down menu.
         - If your suppliers are not required to sign lien waivers on Textura, then type out the full company name.
      ii. Type the description of work under "**Service.**"
         - Ex: Supplier
      iii. Type the contract value under "**Contract Amount.**"
         - The contract value should be the total amount you plan on paying the supplier throughout the project.
         - If you are unsure of the amount, put in an estimate. This column can be revised each draw.
      iv. Type the payment amount this period under "**Current Payment.**"
   c. When finished click "Save Changes"

   d. Click Next Steps "Send to Signer"

4. **Send to Signer**
   a. Click "Show Draw Summary" on the right hand side of the screen under Project Summary.
   b. Verify the payment amount on the right, and click the button labeled "Send to Signer."

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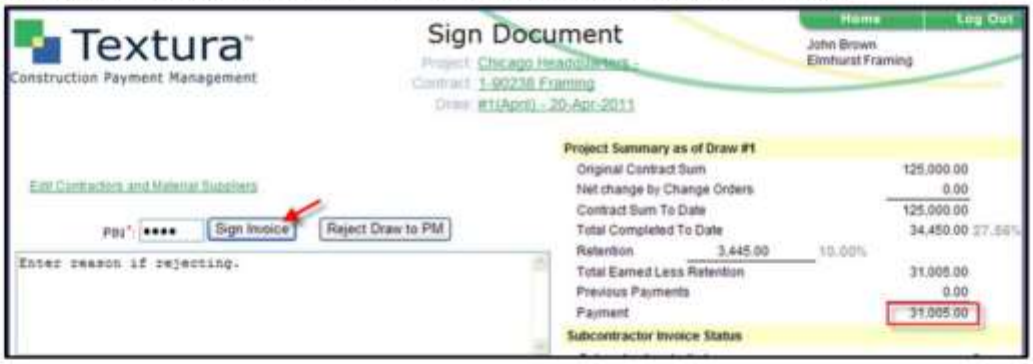
c. If you are the signer, click on the green "here" link from the status screen to sign the documents.
   i. You can also click on the Draw # at the top of the page.
d. If you are not the signer, an e-mail will be generated and sent to the signers on the project.
   i. You must sign the documents before the pay application is submitted.

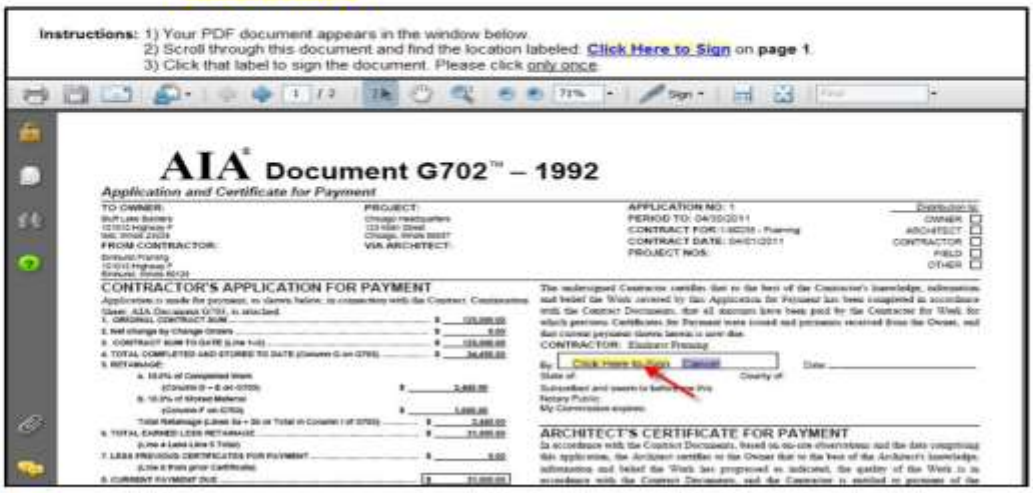
5. Sign Invoice and Lien Waivers

a. From the Draw Home Page and the Project Home Page signers should click "Sign Invoice for Draw #."

b. Review the Payment Amount, type in your PIN (4-6 Digits), and click "Sign Invoice."



c. Your PDF document will appear.
   i. Click "Click Here to Sign" in the body of the document.



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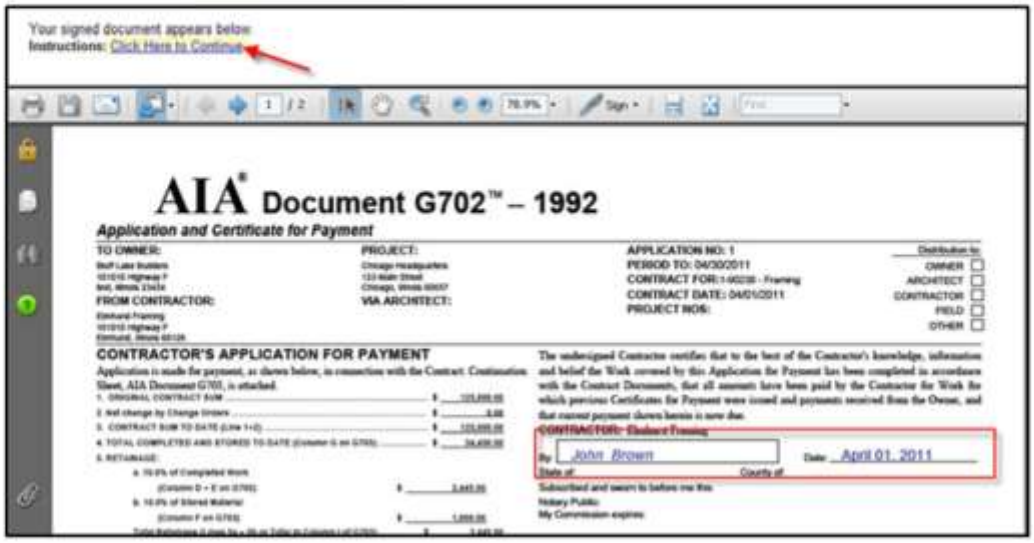
d. Your Electronic Signature will appear on the document.
   i. Click "Click Here to Continue" to submit the document.



e. If notarization is required, **the notary will need to come to your computer** and enter in their Username, Password and PIN.
   i. They will apply their electronic notary to the document by clicking "Click Here to Sign" in the body of the document, and clicking "Click Here to Continue."
f. Continue to sign and notarize all required documents until you get to a page saying **Your Document has been signed. Next Steps** Sign Lien Waiver
   i. Click "Sign Lien Waiver" to complete the signing process.
g. Put in your PIN (4-6 Digits) and Click "Sign Lien Waiver."
   i. Apply your electronic signature by clicking "Click Here to Sign" in the body of the document, and then clicking "Click Here to Continue" on the top left.
h. **Once all documents are signed you will get to a status screen saying "Your Documents have been signed. This pay application has been sent to <Your General Contractor> for approval."**
   i. This screen indicates your pay application has been submitted successfully, and the draw # will now appear under the "Pending Payment" section of your Project Home Page.

   ii. Your general contractor is responsible for releasing your payment. You will receive an e-mail once payment has been made.

Still Need Assistance? Call 866-TEXTURA (866-839-8872)

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One Way Plumbing LLC
127 - 10th St. South, Ste 200
Kirkland, WA 98033

RE: THE CORA APARTMENTS
SEATTLE, WA

Congratulations and welcome to the team!

As a member of the team, your company will be required to meet certain safety requirements as outlined by Washington State Department of Labor and Industries as well as our company policies. We will be contacting you in the near future to set up a pre-construction safety meeting. Prior to this meeting, we need to receive all your safety documentation. Both the Site-Specific Safety Plan and the MSDS/SDS must be submitted in written and electronic format, a minimum of two weeks before starting work on the project. To jump-start you in the right direction, we have attached the Safety Plan Evaluation form we will be using to review your Site Specific Safety Plan. Please note that all contractors must address the items listed in the Required Safety Program Elements section, and we ask that all required and scope-specific sections are tabbed accordingly for review. The sections numbered 1 through 20 are dependent on your scope of work and hazard exposure. We also ask that you include a brief statement describing your scope of work, and the tools and equipment you will be using.

We will need copies of your first aid/CPR trained personnel to be onsite, and copies of any other special certifications/training that may be required for your work, such as forklifts, aerial lifts, powder actuated tools, or traffic control.

If you will be using a crane onsite, please provide certification for the crane and operator, proof of annual load test, a statement that all maintenance records are available upon request, the crane's log book (must be on the crane) and documentation of the rigger's training.

Feel free to contact our company Safety Director, Joe Sadler (360-815-0755) if you have questions or need clarifications. If you need help in assembling an adequate safety plan, Joe would be happy to give you the resources that can speed up the process.

We look forward to working with you.

Sincerely,

The Cora Apartments Project Team

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SUBCONTRACTOR SAFETY PLAN EVALUATION FORM
Project: The Cora Apartments

Plan submitted by: **One Way Plumbing LLC** Required Safety Program Elements (WAC 296-155-110)	**Submitted in Plan?**	
	Yes	**No**
Company Safety Policy		
Designated Site Safety Representative		
First Aid and Emergency Procedures		
Procedure for Reporting Injury or Illness on the Job		
Weekly Safety Meetings		
Weekly Walk-around Safety Inspections		
General Safety Rules		
Personal Protective Equipment		
Fire Prevention and Protection		
Hazard Communication Program		
Material Safety Data Sheets and chemical inventory		
Fall Protection Policy		
Job Hazard Analysis		
Disciplinary Action Policy		
Heat Related Illness Program		

If Contractor's scope includes any of the following elements, they must submit additional information as detailed in the Appendix to this Evaluation Sheet Sections 1 through 20	**Required?**		**Submitted?**	
	Yes	**No**	**Yes**	**No**
1. Work at height greater than 10 feet?				
2. Work from Ladders				
3. Work from Scaffold				
4. Work from Scissors Lift or Boom Lifts				
5. Trenching/Excavation				
6. Cranes and Rigging				
7. Steel Erection				
8. Demolition				
9. Disturbance of Lead Containing Substances				
10. Asbestos Abatement				
11. Use of Powder Actuated Tools				
12. Use of Fork Lifts				
13. Entry to Confined Spaces				
14. Removal of contaminated soils considered hazardous waste				
15. Traffic Control				
16. Work on energized conductors				
17. Concrete and Masonry Work				
18. Use of electrical equipment, including plug and cord tools				
19. Noise Exposure above 85 dBA				
20. Exposure to Respiratory Hazards, including:				
Concrete grinding, chipping, cutting				
Application of spray-on material, including paint				
Application of adhesives or sealant				
Welding/Torch Cutting				
Sanding Drywall				
Use of combustion engines indoors				
Other Hazardous Chemicals?				

Plan Reviewed by: _____ Date: _____

Final Review by: _____ Date: _____

SUBCONTRACTOR SAFETY PLAN EVALUATION FORM
Project: The Cora Apartments

1. Work at height greater than 10 feet (WAC 296-155 Part C-1)	Included in Plan?	
	YES	NO
Contractor must provide Fall Protection Work Plan, which includes provisions for:		
Identifying all fall hazards in the work area.		
Identifying the method of fall arrest or fall restraint to be provided.		
Specifying the correct procedures for the assembly, maintenance, inspection, and disassembly of the fall protection system to be used.		
Specifying the correct procedures for the handling, storage, and securing of tools and materials.		
Identifying the method of providing overhead protection for the workers who may be in, or pass through the area below the work site.		
Specifying the method for prompt, safe removal of injured workers.		
Ensuring that employees are trained and instructed in the items described in the fall protection work plan.		
The use of a Fall Protection Monitor System is **not** permitted on Exxel Pacific projects.		

2. Work from Ladders (WAC 296-876)	Included in Plan?	
	YES	NO
Contractor safety plan must address:		
Ladder inspection, condition and repair		
Ladder storage and transport		
Ladder set-up and use		
Employee training		

3. Work From Scaffolding (WAC 296-874)	Included in Plan?	
	YES	NO
Contractor Safety Plan must include provisions for:		
Design of scaffold by named qualified person(s)		
Erection of scaffolding under the supervision of qualified competent person(s)		
Inspection of scaffold		
Use of scaffolding by trained personnel		
Training		
Access to scaffolds		
Fall Protection considerations during assembly/disassembly and use of scaffolding		
Use of toe boards or other falling object protection		

4. Trenching / Excavation (WAC 296-155 Part N)	Included in Plan?	
	YES	NO
Contractor Safety Plan must include provisions for:		
Avoiding underground installations		
Providing means of access and egress from excavations		
Protection of employees from cave-ins		
Protection from falling objects or surface encumbrances		
Daily inspection of excavations by competent person		
Maintaining stability of adjacent structures (if present)		

5. Cranes and Rigging (WAC 296-155 Part L & WAC 296-155 Part F)	Included in Plan?	
	YES	NO
Contractor Safety Plan must include provisions for:		
Operating within load ratings		
Control of overhead loads and use of tag lines		
Crane certifications and inspections		
Protecting swing radius		
Avoiding overhead utilities and obstructions		
Operator qualifications		
Rigging inspections		
Rigging use and rigger qualifications		

6. Steel Erection (WAC 296-155 Part P)	Included in Plan?	
	YES	NO
Contractor Safety Plan must include provisions for:		
Development of erection plan		
Rigging of loads		
Maintaining structural stability during erection		
Landing metal decking and other loads		
Fall protection * The use of a Fall Protection Monitor System is **not** permitted on Exxel Pacific projects.		
Falling object protection		
Training for erectors		

7. Demolition (WAC 296-155 Part S)	Included in Plan?	
	YES	NO
Contractor Safety Plan must include provisions for:		
Demolition survey conducted by named competent person		
Copy of survey report to be maintained on site		
Evaluating site for presence of asbestos and other hazardous materials or chemicals		
Control of utilities during demolition		
Protection from falling materials		
Dust control		
Respiratory hazard evaluation and protection		

8. Disturbance Abatement for Lead (WAC 296-155-176)	Included in Plan?	
	YES	NO
Contractor Safety Plan must include provisions for:		
Conducting Initial Exposure Assessments		
Protecting employees during Initial Exposure Assessments		
Evaluating Initial Exposure Assessment to determine need for developing a Worker Lead Protection Plan		
* For assistance reviewing Worker Lead Protection Plan, contact Exxel Pacific Safety Director.		

9. Asbestos Abatement (WAC 296-65)	Included in Plan?	
	YES	NO
Contractor Safety Plan must include provisions for:		
Abatement to be performed by Licensed Asbestos Contractor		
Asbestos Worker training and certification		
Asbestos Supervisor training and certification		
Providing written notification to L&I of abatement project		
Exposure assessments and monitoring		
Communication of asbestos hazards to other persons on site		
Establishing regulated areas		
Establishing work practices and engineering control methods, including wetting, HEPA vacuuming, glove bagging, local exhaust ventilation, and negative pressure enclosures		
Respiratory protection		
Collection and disposal of asbestos containing material		

10. Powder Actuated Tools (WAC 296-155-363)	Included in Plan?	
	YES	NO
Contractor Safety Plan must include provisions for:		
Operator training and qualifications		
Personal Protective Equipment		
Care and custody of powder actuated tools and loads		
Posting of hazard warning signs		
Avoiding use in soft, thin or easily penetrated materials		

11. Use of Fork Lifts (WAC 296-863)	Included in Plan?	
	YES	NO
Contractor Safety Plan must include provisions for:		
Inspection, testing and maintenance of equipment		
Operator training and authorization requirements		
Pre-use operator survey for area hazards such as loose terrain, drop-offs, ditches, overhead obstructions, etc.		

12. Entry to Confined Spaces (WAC 296-809)	Included in Plan?	
	YES	NO
Contractor Safety Plan must include provisions for:		
Identifying and controlling confined spaces		
Permit entry procedures		
Employee training		
* For assistance reviewing permit required confined space entry program, contact Exxel Pacific Safety Director		

13. Concrete and Masonry Work (WAC 296-155 Part O)	Included in Plan?	
	YES	NO
Contractor Safety Plan must include provisions for:		
Protection from impalement hazards		
Safety considerations specific to the concrete delivery method (concrete pump, bucket, tremie)		
Personal protective equipment and first aid supplies to protect from caustic burns		
Post-tensioning operations		
Respiratory protection for concrete finishers		
Establishing limited access zones for masonry wall construction		
Bracing of masonry walls		

14. Use of electrical equipment, including plug and cord tools (WAC 296-800-280)	Included in Plan?	
	YES	NO
Contractor Safety Plan must include provisions for:		
Inspection of cords, cables and connectors		
Ground fault protection		
Grounding		
Protecting cords from damage		

15. Exposure to noise above 85 dBA (WAC 296-817)	Included in Plan?	
	YES	NO
Contractor Safety Plan must include provisions for:		
Identifying and controlling noise sources		
Noise monitoring		
Hearing Protection		
Employee Training		

16. Exposure to Respiratory Hazards (WAC 296-842)	Included in Plan?	
	YES	NO
Contractor Safety Plan must include provisions for:		
Identifying and evaluating respiratory hazards		
Material Safety Data Sheets for chemical products		
Methods for controlling employee exposure		
Methods for controlling fugitive emissions		
Written Respirator Program		
* For assistance evaluating written respiratory protection program, contact the Exxel Pacific Safety Director		

EXXEL PACIFIC
GENERAL CONTRACTORS

One Way Plumbing LLC
127 - 10th St. South, Ste 200
Kirkland, WA 98033

RE: THE CORA APARTMENTS
SEATTLE, WA

SUBJECT: Material Suppliers, Tier Subcontractors / Schedule of Values

Please provide our office with the names of each material supplier and/or tier subcontractor your company plans on using for the above mentioned project. This information can be supplied by returning page two of this letter and needs to be returned ***within one week*** of the date of this letter in order to process your pay application in a timely manner.

If no suppliers/tier-subcontractors are to be used for this job, please indicate on page two and return.

Please refer to Attachment A - "Job Rules and Regulations", Item #4 Lien Releases of your subcontract agreement for specific requirements. Following this closely will aid in smooth and timely processing of your monthly pay application. If additional forms are needed, please feel free to make copies of the pay application or request them from Exxel's accounting department.

Again, this information is required immediately so as not to delay your first payment. Please feel free to call should you have any questions.

Thank you for your prompt attention to this matter.

EXXEL PACIFIC, INC.

Peggy DeRosa
Accounting

COMPANY NAME: One Way Plumbing LLC

PROJECT NAME: The Cora Apartments PROJECT #: 201602 PHASE #: L1.220000 S

1.
Tier-Subcontractor Name: Account Number: Contact Person:

Address: Phone Number: Fax Number:

2.
Tier-Subcontractor Name: Account Number: Contact Person:

Address: Phone Number: Fax Number:

3.
Tier-Subcontractor Name: Account Number: Contact Person:

Address: Phone Number: Fax Number:

1.
Supplier Name: Account Number: Contact Person:

Address: Phone Number: Fax Number:

2.
Supplier Name: Account Number: Contact Person:

Address: Phone Number: Fax Number:

COMPLETED BY:_____PHONE #:_____

! ! I M P O R T A N T ! !
PLEASE READ

Before you Begin Work the following must be completed and submitted to the main office in Bellingham:

1. ***Signed Contract*** Making sure all information on the signature page of your contract is completed and all applicable pages are initialed by the appropriate person/s.
2. ***Insurance Certificate*** See Attachment B in your contract for guidelines, insurance limits and additional insured requirements.

Billing Guidelines

1. ***Billings are due by the 20th each month.***
2. ***Billings will be submitted through Textura***, please see Attachment H for more details.
3. ***Supplier/Tier-Subcontractor List*** must be completed and returned, even if no suppliers and/or tiers will be used.
4. ***Submit Supplier and/or Tier-Subcontractor Waivers*** for the month/billing period for which you are billing to Peggy DeRosa at PeggyD@exxelpacific.com. Supplier/Tier waivers are NOT required with your billings, but must be received by the 10th of the following month, before your payment will be released. Reminders will be sent. Please use the Exxel form provided, a 2-part conditional/unconditional waiver marked "USE ONLY FOR SUPPLIERS AND/OR SUBCONTRACTORS**.**
5. ***Retention Billings*** will be submitted through Textura. Final Conditional waivers and Final Unconditional waivers from any applicable suppliers and/or tier-subcontractors will be submitted directly to Exxel Pacific.

In regards to the request of Supplier and/or Tier-Subcontractor waivers, Exxel Pacific, Inc has incorporated the practice of obtaining these forms at the suggestion of the AGC of Washington.

Billing Questions

Questions regarding supplier and/or tier subcontractor waivers can be directed to Peggy DeRosa – peggyd@exxelpacific.com.

USE ONLY FOR SUPPLIERS AND/OR SUB-TIER SUBCONTRACTORS

CURRENT MONTH LIEN WAIVER

CONDITIONAL WAIVER & RELEASE UPON PAYMENT

The undersigned does hereby acknowledge that upon receipt by the undersigned of a check from **One Way Plumbing LLC** in the sum of $_____ payable to _____. and when the check has been properly endorsed and has been paid by the bank upon which it was drawn, this document shall become effective to release pro tanto any and all claims, mechanic's or materialmen's lien, equitable lien, stop notice, or bond claim rights it has on the *The Cora Apartments* project located at *19 W HARRISON, SEATTLE, WA 98109* through _____ (last date of progress pay period for which payment is requested only and does not cover any retention, unexecuted change order work or unresolved claims through the above date; or work furnished after that date).
Before any recipient of this document relies on it, said party should verify evidence of payment to the undersigned.

I CERTIFY UNDER PENALTY OF PERJURY UNDER THE LAWS OF THE STATE OF WASHINGTON THAT THE ABOVE IS A TRUE AND CORRECT STATEMENT.

Date:_____

Subcontractor/Supplier:_____

By: _____It's: _____

State Of:_____County Of:_____

Subscribed and sworn to before me this _ day of _____,

_____ (year). Commission Expires: _____

Notary Public:_____

PRIOR MONTH LIEN WAIVER

UNCONDITIONAL PROGRESS WAIVER & RELEASE

The undersigned does hereby acknowledge that the undersigned has received a progress payment and has been **Paid In Full** through _____ (date of previous progress payment period) for labor, services, equipment or materials furnished to *The Cora Apartments* project located at *19 W HARRISON, SEATTLE, WA 98109* and does hereby release pro tanto any and all claims, mechanic's or materialmen's lien, equitable lien, stop notice, or bond claim rights it has on the above-referenced job through _____ (date of previous progress payment period) excluding retainage, unexecuted change order work or unresolved claims through the above date; or work furnished after that date).

NOTICE: THIS DOCUMENT WAIVES RIGHTS UNCONDITIONALLY AND STATES THAT YOU HAVE BEEN PAID FOR GIVING UP THOSE RIGHTS. THIS DOCUMENT IS ENFORCEABLE AGAINST YOU IF YOU SIGN IT, EVEN IF YOU HAVE NOT BEEN PAID.

I CERTIFY UNDER PENALTY OF PERJURY UNDER THE LAWS OF THE STATE OF WASHINGTON THAT THE ABOVE IS A TRUE AND CORRECT STATEMENT.

Date:_____

Subcontractor/Supplier:_____

By: _____It's: _____

State Of:_____County Of:_____

Subscribed and sworn to before me this _ day of _____,

_____ (year). Commission Expires: _____

Notary Public:_____